



AKRONRADIOLOGY, INC.

EMPLOYEE HANDBOOK

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Version 1: 2/21/2022

Version 1.1: 9/1/2024

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Welcome

Dear New Member to the ARI team:

Welcome to our private practice. We hope that this handbook will provide some guidelines and answers to questions about our day-to-day business. We hope that you will enjoy a successful and prosperous career in the practice of radiology with us.

To our current members:

It is finally here, the long-anticipated employee handbook. Thanks to former ARI members for working on this handbook as well.

Jeffrey S. Unger, M.D.

President, Akron Radiology Inc.

Date: 2/21/2022

Updated: 9/1/2024

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Section 1: Introduction

1.1 About this Handbook

We are confident that you will find Akron Radiology, Inc. (ARI) a dynamic and rewarding place in which to work, and we look forward to a productive and successful partnership. We consider the employees of ARI one of its most valuable assets. This Handbook is a resource guide and summary of the various policies, benefits and services available to ARI employees.

We believe in keeping employees fully informed about our policies, procedures, practices, benefits, what employees can expect from us, and the obligations assumed as an employee of ARI. This practice is designed to provide fair treatment of employees. This Handbook is intended to provide employees with basic information and all employees are expected to become familiar with the policies, procedures, practices, and benefits of ARI. The policies and practices described in this handbook reflect a great deal of concern for the people who make it possible for ARI to exist . . . its employees.

There are several things to keep in mind about this Handbook. First, it contains only general information and guidelines. It is not intended to be comprehensive or to address all the possible applications of, or exceptions to, the general policies and procedures described. For that reason, if you have any questions concerning eligibility for a particular benefit or how a specific policy or practice applies to you, then you should address your questions to the Practice Administrator or the President.

Because ARI is a growing, changing organization, the policies contained in this handbook may be added to, deleted, or changed by the Company at its sole discretion, except that we will not modify our policy of employment-at-will in any case. We will try to inform you of any changes as they occur. ***You are responsible for knowing and understanding the content of this Handbook, so please let us know if you have questions or need assistance.***

This Handbook is the property of ARI. The information in this Handbook is strictly limited to use by the Company and its employees. No part of this Handbook may be reproduced or transmitted by any means for any commercial or business purpose. Disclosure to competitors or to gain a business advantage for yourself or others is strictly prohibited.

Nothing in this Handbook is intended to, nor should be understood to, limit your right to engage in protected, concerted activity or to discuss terms and conditions of employment with co-workers or others as authorized by law.

Some subjects described in this Handbook are covered in detail in official policy documents, including the ARI code of regulations (bylaws) document. Refer to these documents for specific information because the Handbook only briefly summarizes those guidelines and benefits. Please note that the terms of the written insurance policies are controlling and override any statements made in this or other documents. Legal requirements will govern as the final word in the case of any inconsistencies between this handbook and applicable laws.

Throughout this Handbook, use of the terms "Employer", "ARI," "we" or "us" means Akron Radiology, Inc. with whom you are currently employed and the Company's successors and/or assigns.

This Handbook issued 2/1/2022 replaces and supersedes any previous written or unwritten handbooks, policies, procedures, practices, etc. of ARI.

1.2 About the Company

Akron Radiology, Inc. is a physician group with 30+ board certified, sub-specialty trained radiologists serving Summa Health System locations, Western Reserve Hospital, and Crystal Clinic Orthopedic Center. Our specialties include mammography, musculoskeletal, body imaging, nuclear medicine and PET imaging, neuroradiology, interventional radiology, cardiovascular imaging, and general diagnostic imaging.

The state-of-the-art equipment and certified radiology technologists allow us to provide excellent medical care in making the clinical diagnosis for our patients.

1.3 Mission Statement

We are a local physician team dedicated to providing expert radiologic services to our community with compassionate, individualized care.

1.4 Approach to Your Job

Commitment to the Success of You and Us. You are very important to the success of ARI. We are committed to providing the best possible climate for maximum development and goal achievement for all employees. Our practice is to treat each employee as an individual.

Your overall goal as an employee is to support the successful and efficient operation of our Company and serve our patients. In whatever you do, do your very best. Honesty, integrity and excellence should be your highest priorities.

Also, in addition to the guidelines provided throughout this Handbook, you are expected to use common sense in your approach to your job and your interactions with others.

Working Well Together. We want you and your co-workers to work well together to provide a safe and productive environment for everyone. Each employee is expected to work cooperatively with management, co-workers, patients and others to achieve your job-related goals. Work-related interactions must always be free of threatening, abusive or vulgar language.

Working Well with our Patients and Visitors. Treat all patients and other visitors with dignity and respect without regard to race, color, religion, sex, national origin, age, disability, payment source, sexual orientation, gender identity, marital or family status, citizenship or other classifications. Abuse or threats of any kind whether physical, verbal or emotional are never acceptable.

It is also important to use appropriate professional behavior in your interactions with patients, the general public and others you interact with as part of your job, whether in person, on the phone, or through other communication tools such as email. Rude, discourteous or disrespectful interactions with others, whether in speech or action, are unacceptable.

Discussing Concerns. If you have a problem or concern with a co-worker, management, patients, visitors, or others, we encourage you to express your concern to the Practice Administrator or the President. We are committed to discussing and, when possible, resolving your problems or concerns. We ask that you let us know your concerns, listen and compromise to find solutions and focus on resolving problems.

Our Door Is Open. We know employees are the backbone of ARI. As you learn and grow in your job, you may have ideas or suggestions to improve our operations, be more efficient and serve our patients better. Please share those ideas with us. Likewise, if you have concerns about inefficiencies, patient interactions or anything else, we want to know about that as well.

We have detailed policies about reporting serious issues such as discrimination or harassment and we encourage you to familiarize yourself with those policies. Occasionally, in all companies, differences of opinions and misunderstandings occur. These differences should not be allowed to continue unresolved. If there are other concerns impacting your job, positively or negatively, please come see a supervisor or member of the management team. We are committed to your well-being as an individual and an employee.

1.5 Questions

This Handbook may not answer all of your questions. You may have a special need, circumstance or problem that requires a personal response. As questions arise, do not hesitate to contact the Practice Administrator or the President. You and your needs are important to ARI.

Section 2: At-Will Employment & Equal Opportunity

2.1 At-Will Employment

This Handbook contains information about the employment policies and practices of ARI. Your employment with ARI is at-will. This means that you have the right to end your employment with ARI at any time and for any reason, with or without cause or notice, and likewise ARI can choose to terminate your employment at any time for any reason, with or without cause or notice, subject only to the limitations imposed by applicable law and subject to your contract terms. You have an obligation to notify ARI if, for any reason, you have a contractual obligation that would prohibit you from working for us.

Keep in mind that neither this Handbook nor any oral or written statements shall limit the right to terminate or change this employment at-will status. No manager, supervisor, or employee has the authority to enter into an agreement for employment for any specific period of time or to make an agreement for employment other than at-will. *Only the Practice Administrator or President has the authority to enter into any agreement for employment for any specific period of time or any agreement for benefits.* Any such agreement must be in writing and signed to be enforceable.

2.2 Equal Opportunity Employer

ARI is committed to equal opportunity employment and to providing a work environment free of all forms of unlawful discrimination and harassment.

To meet this goal, all employees and prospective employees are recruited, selected, trained, and promoted based on merit, qualifications, abilities, and other legitimate factors as determined by Management without regard to race, color, sex, gender identity, transgender status, sexual orientation, religion, age, pregnancy, national origin, disability, citizenship, marital or family status, genetic information, ancestry, veteran or military status, or any other legally protected status. This same non-discriminatory consideration will be used in *all* aspects of your employment with us, including, without limitation, recruitment, hiring, pay, benefits, job assignments, transfer, promotion/demotion, layoffs and terminations, evaluations, discipline, corrective measures, training, education, recreational and social activities, and safety and health programs.

2.3 Anti-Harassment & Discrimination

ARI is committed to maintaining a work experience that is based on mutual respect and teamwork and that is free of harassment, discrimination, bullying, intimidation, and coercion. All employees are entitled to a 100% non-hostile environment. ARI will not tolerate harassment, sexual harassment, bullying, discrimination or retaliation in the

workplace whether committed by employees, physicians, students or visitors to ARI while they are on-site or attending an ARI-related activity.

All employees are strictly prohibited from discriminating against or harassing any person (including employees and guests) because of sex (with or without sexual behavior), race, color, gender identity, transgender status, sexual orientation, religion, age, pregnancy, national origin, disability, citizenship, marital or family status, genetic information, ancestry, veteran or military status, protected activity, or any other legally protected status. Verbal, physical, sexual, or any other form of harassment that belittles or demeans any individual of a protected class is prohibited, including conduct that has the purpose or effect of unreasonably interfering with an employee's work performance or experience or creating an environment that is hostile, intimidating or offensive.

This policy applies in any place and any time in your interactions with co-workers or patients even when you are not working. This policy also applies to use of personal cellular phones, computers, texting, electronic social media outlets, etc.

This policy covers workplace participants which includes almost everyone you come into contact with as a part of your employment no matter his or her authority, position, or classification. *In other words, we do not tolerate harassment or discrimination by co-workers as well as from patients, guests, contractors, or anyone else you encounter as part of your job, including those any at any client's location.* We will work to resolve your concerns regardless of the source.

Discrimination is Prohibited. For the purposes of this policy, "discrimination" is defined as treating or considering a person more favorably or less favorably based on a legally protected characteristic such as sex, race, color, age, religion, disability, ancestry, veteran or military status, sexual orientation, gender identity, national origin, citizenship, protected activity, etc. ARI does not tolerate any type of discrimination.

Sexual Harassment is Prohibited. There is no place for *any* type of harassment in our business or in your interactions with co-workers and others. We do not tolerate it, and we want you to report it. If you believe you or anyone around you is being subjected to sexual harassment, please tell us immediately. We explain how to report concerns in the next section.

Understanding and Avoiding Sexual Harassment. The following information is intended to give you guidelines for both your expected behavior and to help you identify how harassment may arise, so you can avoid unacceptable behavior, identify if you or anyone around you is experiencing it, and know how to report it.

There are two types of sexual harassment:

1. *Quid pro quo* ("this for that") sexual harassment
2. Hostile Environment sexual harassment

Quid pro quo sexual harassment occurs when an employee, usually a supervisor or someone else who can control your employment, offers you job benefits (like pay raises

or promotions), or threatens job losses (like pay decrease or firing) in exchange for sexual or dating favors.

Examples of *quid pro quo* sexual harassment include:

- Making an employee's job difficult after she ends a romantic relationship with her supervisor.
- Treating an employee better or worse depending on if he accepts or refuses a date.
- Demanding sexual favors in exchange for a pay raise, scheduling preferences, promotion, or other job benefit.

Hostile Environment sexual harassment occurs when any employee creates a work environment that a reasonable person would find intimidating, hostile or offensive to the point of impacting that person's job and performance.

Examples of hostile environment *sexual* harassment include:

- Physical actions such as touching, blocking, staring, grabbing, or making sexual gestures. It also includes sexual assault or abuse.
 - Example: Slapping a co-worker on the butt or running your eyes up and down a co-worker's body.
- Words or gestures such as sexual requests, slurs, insults, jokes, noises, and other sexual comments or references.
 - Example: Frequently telling "dirty" jokes or referring to co-workers in a sexual way ("She's hot"; "He's a player").
- Making, showing, or drawing materials that are sexual, such as watching or posting pornography, "dirty" pictures or other items. This includes showing these things on computers, through e-mails, websites, cell phones, text messages, or in other ways.
 - Example: Showing off or forwarding naked pictures on your phone; displaying a phallic symbol or object.
- Constant or unwelcome questions about an individual's gender identity, ridiculing or overtly shunning someone because of their mannerisms or failing to conform to gender norms.
 - Example: Sneering at a female employee who dresses in a traditionally masculine manner; making fun of a male employee who engages in traditionally feminine hobbies.

In order for the offensive actions to create a hostile environment, they must be unwelcomed. In other words, the offended employee must not have encouraged or willingly participated in the offensive behavior.

Also, remember that sexual harassment can occur between employees of the same sex. The employees involved do not have to be a different sex in order to experience sexual harassment or create a sexual harassing environment.

You are absolutely prohibited from:

- Threatening or even suggesting to another employee that any part of his/her job is dependent upon agreeing to or giving in to sexual or dating activities.

- Acting in a way or treating other employees in a way that creates a sexually hostile environment.

All Harassment is Prohibited. Harassment, even when not sexual in nature, can also occur when the hostile treatment is based on a person's sex, race, color, age, religion, disability, ancestry, veteran or military status, sexual orientation, gender identity, national origin, citizenship, protected activity, or any other legally protected status ("characteristics"). Prohibited harassment is behavior based on the above characteristics and is so severe or pervasive that it interferes with an individual's work or performance or creates an intimidating, hostile or offensive working environment.

As with sexual harassment, the offensive actions must be unwelcomed in order to be considered unlawful. In other words, the offended employee must not have encouraged or willingly participated in the offensive behavior.

Some examples of other types of harassment include:

- Name calling, graffiti, displaying offensive objects or pictures, or making comments, jokes, or slurs about a person's sex, race, color, age, religion, disability, ancestry, veteran or military status, national origin, etc.
 - Example: Displaying a noose, calling someone a "towel head" or praising the KKK.
- Offensive stereotypes based on these characteristics.
 - Example: Referring to a person from the Middle East as a terrorist.
- Intimidation, physical violence or other offensive conduct directed toward an individual because of their sex, race, color, age, religion, birthplace, ethnicity, culture, language, dress, accent, etc.
 - Example: Complaining about an employee who takes days off for religious reasons, ridiculing cultural dress, refusing to refer to a transgender individual by his/her desired name or pronoun.
- Unwelcome touching or contact, including non-sexual touching.
 - Example: Gratuitous back rubs, cheek kissing, etc.

You are absolutely prohibited from acting in a way or treating other employees in a way that creates any type of hostile environment. Keep in mind that it is still harassment even if the employees involved are the same race, religion, etc.

To report concerns, see "Reporting Harassment, Discrimination, Bullying, Violence, or other Concerns" in this Handbook.

Workplace Violence and Bullying. Like harassment or discrimination, we do not tolerate any type of violence or bullying in the workplace or outside the workplace involving employees, management or patients. Any employee that threatens, plots to commit, or commits a violent act is subject to discipline, including termination.

Violence and bullying can take many forms, the following are *some* examples:

- Physical assault: Bodily injury, with or without a weapon, or uninvited bodily contact with or without injury.

- Example: Shoving, tripping, poking, etc.
- Physical threats and aggressive action: Conduct that would lead a reasonable person to feel threatened or unsafe or to fear physical harm, even if no actual physical contact is made.
 - Example: Blocking, staring, glaring, throwing objects, pounding a desk, raising a fist, acting like you are going to hit, shove, or injure another, backing someone into a corner, or other threatening conduct.
- Verbal and written threats: Using words or email, texting, blogging, online social media, or other written or technological methods to threaten or imply harm.
- Plots to damage a facility or to intimidate, hurt or kill co-workers or others that interact with the workplace.
- Other violent actions or crimes at work or during work-related events or directed toward an employee or workplace participant while performing his or her job duties.

Bullying is not always physical in nature and includes behavior that intimidates, offends, degrades or humiliates a worker, possibly in front of co-workers or patients. Bullying can include the following behaviors:

- Intentionally excluding or disregarding a co-worker in work-related activities or in a way that has a material effect on that person's job or personhood.
 - Example: Failing to inform a co-worker of an important work meeting, excluding a co-worker from a work-related event all others were invited to attend.
- Colleagues threatening to replace an employee, a supervisor making jokes about one's lifestyle or background, providing inaccurate information and withholding correct information that impacts the ability of an employee to perform their job.

If you are experiencing any of the conduct described above or similar conduct or are concerned about your safety or the safety of a co-worker, or if you have heard rumors of potential violence from employees or others that interact with your workplace, you should take whatever immediate action is necessary to protect yourself or co-workers. Call 911, leave the area, seek help from your supervisor or co-workers, or take other necessary steps to protect yourself or others.

Even if no immediate action is required, contact your supervisor, the Practice Administrator or President as soon as possible to report your concerns. We encourage you to report all concerns, especially before a problem escalates. See the following section on reporting concerns.

Reporting Harassment, Discrimination, Bullying, Violence, or Similar Concerns. If you are concerned about the personal safety of yourself or another co-worker or if believe you are being harassed, discriminated against, or bullied, whether by a co-worker, supervisor, patient or anyone else you come in contact within your job, or you know or suspect this is happening to another employee or workplace participant, you must report it immediately to the Practice Administrator or President:

Name: John Vizzuso
Title: Practice Administrator
Phone: 330.375.4028
Email: jvizzuso@akronrad.com

Name: Dr. Jeffrey Unger
Title: President
Phone: 216-978-5669
Email: jeffreysunger@gmail.com

Online anonymous reporting: Summa SafeCare on Summa@work website

You are *not* required to first complain to the person who is causing the problem. However, if you experience wrongdoing, like discrimination or harassment, *you must make a reasonable effort to make the wrongdoing known as soon as or soon after you experience or discover it.* Discussing or reporting acts of discrimination or harassment to any person not listed above does not constitute a report.

If your report involves the Practice Administrator, President or a Board Member, we will likely hire an objective outside party to investigate the situation and make recommendations to resolve any concerns. ARI truly wants every employee to feel free to report any and all harassment, discrimination, bullying, or similar concerns at any time and is committed to providing a workplace free of these negative experiences.

What to Expect When You Report a Problem or Concern. As quickly as possible, ARI will try to address, stop, and prevent any harassment, discrimination, bullying, retaliation, or similar activity of which it is aware.

A report of a violation of our policies on discrimination, harassment, bullying or retaliation will result in an appropriate investigation of the allegations. ARI may use third parties to investigate allegations. All employees and workplace participants who are contacted as part of an investigation are expected to fully cooperate. Unreasonable refusal to participate in an investigation of a complaint may lead to discipline including termination.

Please understand that a full investigation can, in some cases, take several weeks. You are always welcome to ask about the status of the investigation at any time. ARI will try very hard to be discreet in our investigation. Please keep in mind, however, a thorough investigation may require us to speak with co-workers, patients, the person against whom you are making the complaint or others.

The interviews, allegations, statements, and identifies will be kept confidential, on a need-to-know basis, consistent with the law and the investigation process and goals. Sometimes we may request that you or others keep the investigation or information about the investigation confidential for the protection of witnesses, others or evidence, or for other reasons related to the well-being and safety of employees or others.

False Claims Prohibited. A complaint under this policy is a serious matter. Any employee or workplace participant that makes a knowingly false or frivolous claim of workplace wrongdoing, like a knowingly false claim of discrimination or harassment, or knowingly provides false information as part of an investigation, will be subject to discipline or termination.

Penalties for Violations. Those found to have violated this policy on harassment, discrimination, bullying, and retaliation are subject to discipline, including termination. Keep in mind, however, that any discipline or corrective measure will depend on the circumstances of each report and will be the decision of ARI.

Retaliation. Retaliating against (“paying back”) employees who make a complaint, or who help us investigate complaints, is absolutely prohibited. Retaliation can include, but is not limited to, harassment, discrimination, bullying, or any other unfair treatment or abuse of power. Any employee or workplace participant who retaliates against another for making a good faith report or for participating in an investigation of workplace wrongdoing is subject to discipline, including termination.

Any suspected retaliation should be reported. If you believe you are being subjected to retaliation for reporting a violation of this policy or for participating in an investigation of this policy, you should report the retaliation immediately in the manner described above. Please note that you do not have to confront the person that is the source of the retaliation before reporting it, but to help prevent retaliation from continuing, you must report it.

Additional Information. If you have any questions about this policy or how to report concerns, please contact the Practice Administrator or President.

2.4 Requests for Accommodation

ARI is committed to providing reasonable accommodations to persons with a disability, to pregnant employees, and to employees practicing their religion. If another reason exists for asking for an accommodation, ARI will consider it in accordance with this policy.

Disability. ARI will provide reasonable accommodations to any qualified individual with a known disability as required under federal, state, or local law unless the accommodation would impose an undue hardship on the Practice. Individuals with disabilities must make their disability known to ARI so that the various reasonable accommodations can be examined.

Pregnancy. If you require a pregnancy-related accommodation, please discuss this with us so that we can explore options. We will seek to accommodate you in the same manner we have accommodated other employees who have had similar non-pregnancy limitations.

Religious Expression. ARI will endeavor to accommodate the sincere religious beliefs of its employees to the extent such accommodation does not pose an undue hardship on the Practice's operations. We understand that sometimes work or work policies and expectations may affect your sincerely held religious beliefs or practices. If this happens, we encourage you to speak to the Practice Administrator or President to see if a reasonable accommodation is available that would avoid the impact of work on your religious practices or beliefs. We are open to your suggestions and needs on this issue.

To Make an Accommodation Request. Your participation in this process is both necessary and expected. Direct your accommodation request in person or in writing to the Practice administrator or the President.

What is considered a reasonable accommodation varies and is determined by a number of factors, including safety. All requests for accommodations will be evaluated on a case-by-case basis taking into consideration all known circumstances.

Keep in mind, however, that we may not be able to accommodate every request if it results in an undue hardship on the Practice or its patients. We may also propose alternatives that would meet your personal needs while allowing you to satisfactorily perform your job.

While some medical information or documentation may be necessary as we explore reasonable accommodations, it is never our intent to obtain genetic information, so please remember that only accommodation-related information is provided to us.

If you have questions, suggestions or concerns about this policy, you should direct them to the Practice Administrator or the President.

Section 3: Classification, Hours & Compensation

3.1 Employment Classification

Employment classification is important for the purposes of determining eligibility for benefits, overtime pay, paid time off, and other job-related matters. Each employee will be classified based on hours worked, job duties, and compensation.

Personnel Classification:

For purposes related to personnel administration, all employees are placed into one of the following classifications:

- A. **Physicians or Qualified Healthcare Provider** – Those employees with responsibilities for direct patient care such as physicians, physician assistants, radiology assistants, nurse practitioners and other positions as identified by the President. Credentialed providers report to the President. Classifications currently include shareholders, full-time, and part-time employees depending upon contract agreement.
- B. **Office Support Staff**– Those employees with responsibilities for scheduling, bookkeeping, invoicing, payroll, marketing, and other positions identified by the President. Office or Support Staff report to the Practice Administrator.
- C. **Administration**– Those employees with responsibility for overall management of the Practice including practice administrator or director of finance. Administrative staff report to the President.
- D. **Clinical Support Staff**- Those employees who work under the supervision of a physician or other qualified health care professional, including x-ray and ultrasound technologists, patient care coordinators, medical assistants, registered nurses, scribes, and other positions as identified by the President. Individuals serving in these functions are not ARI employees currently.

Status based on hours worked for support staff and Administration:

Full-time employees are regularly scheduled to work at least 40 hours per workweek. Full-time employees are eligible for ARI benefits.

Regular Part-time employees have a regular schedule and work 39 hours or less per workweek. Regular part-time employees are eligible for pro-rated holiday pay only and are generally not eligible for other benefits except overtime compensation, workers' compensation and unemployment insurance or other benefits as required by law.

Part-time employees are scheduled as needed and are generally not eligible for benefits except overtime compensation, workers' compensation and unemployment insurance.

Temporary On Call (TOC) or As-needed employees are scheduled to work on a full- or part-time basis for a specified period of time or on a specified project lasting less than one year. Examples include a person hired for the summer, hired as a temporary replacement, or hired to fill a short-term need. The employee will be paid for actual hours worked. However, employees hired for a specific project or period of time will not experience a change in status simply because they remain in employment for a longer period of time. An employee will change from temporary to regular status only if advised of such a change in writing. As-needed employees are generally not eligible for benefits except overtime compensation, workers' compensation, and unemployment insurance.

Status based on job duties and compensation:

Exempt employees are exempt from the overtime requirements of federal and state law and are not entitled to overtime pay. Exempt employees are paid a pre-determined wage.

Non-exempt employees are entitled to overtime pay under federal or state law. Non-exempt employees are paid a wage based on the amount of time spent working and are required to clock in when beginning work and clock out when their shift ends. Non-exempt employees are due overtime wages should they exceed 40 hours per workweek.

Exempt/non-exempt status is made on a case-by-case basis and dictated by federal and state wage and hour laws, not by ARI, its Practice Administrator, or the President. Your status may change as your roles and responsibilities evolve. If you are unsure of your employment status, please see the President or Practice Administrator for clarification.

3.2 Work Schedules

The normal work week begins on Monday and ends on Friday with working hours between 7:00 a.m. to 5:00 p.m.; however, regular working hours may vary depending on the job, department, shift, or working conditions. Work hours for Credentialed employees providing patient care include after hours and weekends and are distributed based on current ARI policy as approved by the board of directors. It is required that credentialed employees report to their scheduled workplace prepared to start work at the scheduled time and depart after their scheduled time is completed. The Practice Administrator may notify you of your schedule and will also give you advance notice if your hours will change.

Each employee is expected to complete a normal workday and work week. All non-exempt support staff and administrative employees must submit their work hours per week for each pay period using a combination of regular hours and paid time off.

3.3 Call Off

It is important that our patients and your co-workers can rely on your regular and timely attendance. All non-exempt employees must report to work at the beginning of each shift. The Practice Administrator or President must approve any change from the normal schedule, and you must keep the Practice Administrator informed of your whereabouts during the workday.

Support staff and administrative employees - If you are going to be unexpectedly late or absent, notify your supervisor/Practice administrator as soon as practicable and preferably no later than one (1) hour *before* your shift starts by phone call or voice mail. Telling a co-worker or texting someone is *not* proper notification. Only in the rare case of an emergency should you call in *after* the start of your workday. You must call each day of an unplanned absence.

Physicians and qualified health care providers- If you are going to be unexpectedly late or absent, text or call the Scheduler and/or Practice Administrator as soon as practicable and preferably no later than one (1) hour *before* your shift starts. If you are working an ED shift, inform the Scheduler or Practice Administrator as soon as practicable. Telling or texting a colleague is *not* proper notification. Only in the rare case of an emergency should you call *after* the start of your workday. You must call each day of an unplanned absence.

If you have planned absences or know ahead of time that you will need to be late, notify the Scheduler and/or Practice Administrator as soon as you are aware of the need to be absent or late, and request time off.

Frequent unexcused tardiness or absences or early departure will result in corrective measures and possible termination if the problem is not corrected in a timely manner.

3.4 Overtime for Support Staff and Administrative employees

Most support staff and administrative employees are scheduled for no more than 40 hours per week and should be able to effectively perform their jobs in that timeframe. You will be paid one and one-half (1½) times their regular rate for all hours worked in excess of 40 in one workweek in accordance with federal and state wage and hour restrictions.

You are to work overtime only at the request and authorization of their supervisor. Working overtime without permission can lead to corrective measures, even termination for ongoing violations.

Occasionally, you may be required to work overtime. Failure to work assigned overtime may result in disciplinary action, up to, and including, possible termination of employment.

If you are entitled to overtime pay (not all positions are) and overtime is not required, but you feel like you need to work more than 40 hours to get your job done, you must receive written permission *prior* to working the extra time. *Record all overtime work, whether you received permission or not.* You will be compensated for this time. Should you find it consistently difficult to meet your job expectations within 40 hours per week, please let us know so we can evaluate your workload.

You will not be forced to work off the clock and we prohibit off-the-clock work even if you think it is voluntary. Please contact the Practice Administrator immediately if you feel that you are being told directly or indirectly to not report time worked.

For the purposes of calculating time worked and overtime, our workweek runs from Monday 12:00 a.m. to Sunday 11:59 p.m. Hours for which an employee is paid but for which he or she does not actually work (such as holidays, vacation, personal time, etc.) are not counted as hours worked for computing overtime payments.

For physician and credentialed employees, opportunities may arise for extra work shifts which carry additional compensation, but these shifts and the associated compensation are subject to prior approval by the President or Board.

3.5 Meals/Breaks

For physicians and credentialed providers, meals and breaks are to be arranged around patient care responsibilities. If assigned clinical responsibilities consistently prohibit ability to reasonably obtain a meal during a shift of 8 or more hours, this should be reported to the President and Practice Administrator for purposes of achieving adequate coverage. Time away from work should be limited to 30 minutes.

Support staff and administrative employees receive two 15-minute break periods during a regular 8-hour workday. Break periods should not exceed approved time allocated for each 4-hour period worked. Breaks cannot be accumulated and used as compensatory time. Breaks may not be used at the beginning or end of a shift, nor may they be added to the meal break. You will receive a ½-hour meal period during a regular 8-hour workday. Like all breaks, scheduling of the meal period is at the discretion of the employee's immediate supervisor.

The scheduling of all meals and breaks is at the discretion of your supervisor and the needs of the Practice. The supervisor will inform employees of scheduled break and/or lunch periods. Employees are expected back at their workstation ready to start work at the end of each scheduled break and/or lunch period.

ARI will determine whether or not meal breaks are considered work time and, therefore, compensable. If ARI determines your meal break is not to be considered work time and therefore is not compensable, you must clock in and out for the meal break to show that you did not work during this time. However, if your work responsibilities require you to work through a meal period or eat your meal while working, you must let your supervisor know and get approval to work so that you can be paid for that time. If you regularly miss your meal break, we will evaluate your responsibilities and may adjust your workload, as needed.

3.6 Breaks for Nursing Mothers

Employees who are nursing will be provided with reasonable unpaid break time to express breastmilk for up to one year after the birth of a child. ARI will make reasonable effort to provide a private location. Employees will not be retaliated against for exercising their rights under this policy. Contact the Practice Administrator to make arrangements.

3.7 Flexible Schedule/Flextime

ARI recognizes the growing demand and need for a work/life balance. The nature of our business and the needs of our patients typically require standard work hours. In limited situations where the needs of both ARI and the employee can be met, flexible scheduling and/or flextime may be available if there is a bona fide need. The proposed modification for support staff and administrative employees is subject to approval by the Practice Administrator. Modifications for physicians and credentialed employees is subject to approval by the President and/or board of directors. Requests must be submitted to Practice Administrator or President with as much advance notice as possible to allow coverage of patient care. These changes can at any time be altered, modified, amended, or terminated by the above as well. Employees will be provided reasonable notice in the event this should occur. If a change is made, a proxy shall be designated to address any emergencies that may arise when the employee is not working, and the identification of the proxy must be announced.

All hours missed based on a support staff or administrative employee's flextime request must be made up within the same work week (Monday - Sunday). No payment will occur

for missed hours not made up. Physicians and Credentialed Providers will owe back time to ARI in increments of half shifts if when half a shift or more is not worked.

3.8 Recording Work Time

Physician and Credentialed employees are not expected to keep a time sheet. These employees are expected to be engaged in activity for the corporation during scheduled working hours. Any time away from corporation activity (in excess of 30 minutes) which is not scheduled in advance requires the individual arrange for coverage of clinical or corporate responsibilities. Time away from clinical or corporate responsibilities, other than scheduled meetings, conferences, or work-related activities not part of the daily schedule should be reported as far as possible in advance to the Practice Administrator and the scheduler so that appropriate arrangements may be made for coverage of responsibilities. Using scheduled time for personal business is subject to censure and discipline from the corporate board. Failure to provide notification and have appropriate coverage in place for any transient absence is subject to board oversight and board determined disciplinary action.

Some positions are required to track and record all their time worked via our online reporting system as prescribed by the Practice Administrator. These records are for tracking hours worked, regardless of the nature of the work, and calculating wages. Your work hours should be accurately recorded each day you work and finalized by no later than 8:00 a.m. on Monday for the previous week.

Non-exempt employees are required to clock in when they report to work, clock out for lunch period, and back in at the end of the lunch period; and clock out when they finish. Non-exempt employees must clock out for any period of time not spent on Practice (except for excused breaks).

You are in the best position to accurately and honestly record your work time. It is your responsibility to ensure that you record all time you work, even time worked outside of your normal workday. It is also your responsibility to make sure that you record only the time you are working. Each employee must personally track and record his/her own hours.

It is a violation of Company policy for one employee to clock in or out of an employee's online portal, alter another employee's time sheet or alter his/her own sheet without permission.

We want to make sure you are paid for all hours worked. To help you accurately record hours, please follow these guidelines:

- Non-exempt employees are to begin work and clock-in no earlier than five minutes before their work schedule begins and clock-out no later than five minutes after it ends.

- Record exact start and end times, rounding to the nearest 5 minutes.
- Attend to your initial personal matters, such as securing personal items, checking personal text messages, or getting coffee before clocking in.
- Record the moment you begin any type of work, such as checking work voicemail messages, booting up your computer, etc.
- Employees are paid for the time it takes them to reach the job site from the office. Should the employee work at more than one job site in any day, travel time from job to job is paid.
- Your end time should be only after you have stopped all work activities. Do not continue to work after you record your end time, even a small amount.
- Do not conduct personal, non-work activities before your end time.
- Record any time you take a break for more than 15 minutes (lunch, etc.).
- Record all time during which you actually work, including work that occurs outside of your normal workday or if you work through lunch.
- Never record any time you did not actually work.
- If you are a non-exempt employee and it has been determined by your supervisor that it is necessary, or you are required, to check or respond to phone calls, emails or instant or text messages outside of your regular work schedule, then that time spent on work activity should be logged on your time card.

Before turning in your timesheet (submitting your work hours), you must:

- Review it closely to make sure you have accurately recorded all work hours.
- If needed, make notes regarding your work hours (for example, if you worked late or had to leave early).
- Sign it.
- Submit to the Practice Administrator for approval weekly by Monday *every week*.

Questions or Concerns. Please immediately report to the Practice Administrator if you:

- Have any questions or concerns about your pay or timesheets.
- Need to update your time records for *any* reason.
- Are concerned that you have not been properly compensated for all of your work time.
- Believe someone is wrongfully altering your time records or keeping you from recording all of your work time.
- Anyone tells you not to record time you have worked.

You will not get in trouble or be retaliated against for expressing your honest concerns.

We take this policy very seriously. Accurately recording your work time is very important. Therefore, any violation of this policy, including failing to accurately clock in/out or falsifying your own or another employee's time records, may result in disciplinary action, including termination.

3.9 Payday & Paychecks

Pay Cycle. You will be paid bi-weekly on Friday for work performed Monday through Sunday of the previous two (2) weeks. If payday falls on a holiday or weekend, paychecks will be deposited the last business day before the holiday or weekend. Quarterly bonus/reimbursement checks are issued on the last business day of the quarter.

Direct Deposit. You are required to have your pay direct deposited into the account(s) of your choice. Make sure you keep your account information with us accurate and up to date. Pay stubs are accessed via ARI's online payroll processing company.

Authorized Deductions. Each paycheck includes earnings for work performed for the previous two (2) weeks, minus customary employment-related withholdings, deductions for benefit premiums, employee authorized deductions, deductions required/allowed by law (taxes, garnishments, child support payments, etc.), and authorized deductions pursuant to policies in this Handbook.

Please review your paycheck for errors. If you find a mistake, or believe you were not paid for all hours worked, report it to the Practice Administrator immediately. The Practice Administrator will assist you in taking the steps necessary to correct the error.

Payroll Advance. We do not offer pay advances.

3.10 Deductions from Gross Pay

The Company will make arrangements for payroll deductions for the following:

- Federal, state and local income taxes
- Social Security taxes
- Garnishments (including child support), past due taxes or other court ordered wage deductions
- Employee's portion of group insurance premiums
- Employee's portion of group insurance premiums for coverage on eligible dependents
- Loss, damage, or destruction of Company property
- Charitable contributions

Any deductions (other than statutory deductions) must be authorized in writing by the employee. No other deductions will be made unless specifically authorized in writing by the employee. All deductions will be itemized on the employee's paycheck stub. Questions regarding payroll deductions should be directed to the Practice Administrator.

3.11 Garnishments of Employees Wages

Garnishments are court orders requiring an employer to withhold specified amounts from an employee's wages for payment of a debt owed by the employee to a third party. State law requires the Company to honor garnishments of employee wages (including child support) as a court or other legal judgment may instruct.

3.12 Deductions from Salary

Some salary deductions are permitted, and some are not. It is the Company's intent to follow the law and avoid improper deductions. Salaried employees who are not eligible for overtime pay are entitled to receive their full salary, except under certain circumstances. We may make deductions in some cases of full-day absences, to off-set jury or witness fees or military pay, for disciplinary suspensions, your first and last week of work, or other lawful circumstances.

If you feel we have made an improper deduction from your salary, please immediately report this to the Payroll Administrator. We will promptly investigate your concerns. If it is determined that an improper deduction has occurred, you will be promptly reimbursed for any improper deduction made.

3.13 Error in Pay/Reporting Concerns

The Company takes precautions to ensure that employees are paid correctly; however, if an error does occur, the employee should notify the Payroll Administrator. The Company will make every attempt to adjust the error no later than the employee's next regular pay period.

3.14 Compensation Adjustments & Bonuses for support staff

The Company's goal is to ensure you receive fair compensation, which reflects such factors as the responsibilities of your job and the Company's overall growth and performance. In addition, our goal is to reward employees for their individual performance, achievements, and contributions to the Company's success.

The Company may consider a pay adjustment or bonus from time to time. Any change to compensation is based on individual merit, the Company's profitability and any other factor(s) deemed significant by the Company. Pay adjustments and bonuses are completely at the discretion of the Company and are not guaranteed, even for excellent performance.

A pay raise or bonus must be in writing and signed by the President or documented in board meeting minutes to be enforceable. Oral promises or discussions do not create an entitlement to a pay adjustment or bonus of any kind. You must be employed by the Company at the time of eligibility or distribution of the bonus, whichever is later, in order to receive any bonus. Employees in bonus-eligible positions will be provided additional information.

3.15 Years of Service

Years of service relates to total continuous employment in a regular full-time or regular part-time position. Years of service dates are used in computing fringe benefits such as vacation, personal time, retirement, length of leaves of absence, insurance, and recognition.

3.16 Physician Part-time Status

Physician employees can be granted by the board of directors the option to reduce their status from full-time to part-time status (generally 50-80%) for a maximum of two (2) years. The transition from full-time to part-time requires 180 days notification time to the board of directors. Continued part-time status after two years is at the discretion of the board of directors. The board of directors reserves the right to decline a part-time status request. A request to return to full-time status is also at the discretion of the board of directors.

Part-time employees earn a corresponding percentage of physicians' annual compensation (salary, bonus, call pay) and provide a corresponding percentage of full-time requirements regarding weekend rotations, holidays, PM shifts and IR call (if applicable). There is a corresponding decrease in benefits, including business expenses, medical allowance, and short-term disability benefit. The corporation will provide full medical coverage, malpractice coverage and pension contribution (or opting out if the plan provides for it). Part-time employee may not hold a seat on the board of directors.

3.17 Physician Work Expectations

Physician employees are expected to efficiently complete work and maintain an average daily output according to the requirements set forth by the board of trustees. Failure to meet the minimum requirement may result in disciplinary action by the board. As currently approved and subject to change by vote of the board of directors, and with exceptions for new physicians as noted below, average work RVU production will be calculated for the prior six month period of Jan 1-Jun 30 and July 1-Dec 31. All physicians are expected to produce an average output of 45 wRVUs per shift over the six month period. If below this level, then two (2) weeks of vacation time will be removed over the next six months or the equivalent pay.

Order of interpretation: Read non-urgent examinations from oldest to newest. Specialist cases may be read out of order as needed

Turnaround goals: ED – 1hr; Inpatient – 4hr; Outpatient - 24hr

Expected productivity for ED or evening shift: At least 80 cases, including 30+ CT/MR/US/Nuclear examinations should be completed in the normal shift time.

Competency: Physicians need to make a reasonable effort to remain up to date on current practice guidelines, grading systems, and imaging protocols. Physicians working ED, evening and overnight shifts should be able to interpret all urgent imaging examinations. During those shifts, if a physician is not competent to perform a final interpretation, they will either perform a preliminary interpretation in writing in electronic format or directly communicate and hand off the interpretation to a physician with the required skill set. This exception excludes stroke CT and CTA due to the extremely urgent nature of these examinations.

Phone calls and other electronic communication from referring providers or technologists: When receiving a call or other electronic communication, physicians are expected to manage all issues or refer the individual to another available radiologist who may be better suited to manage the concern.

Stat examinations: Stroke CT and CTA must be immediately managed by the ED, evening or overnight radiologists or they should directly transfer the management to another radiologist if necessary. Non-contrast CT results must be called to the designated provider within 15 minutes.

Critical test results: Red category disorders include findings that could lead to immediate death or significant morbidity if not promptly recognized, communicated, and acted upon clinically. These require direct phone call or approved electronic communication to a responsible provider within one (1) hour of detection and

documentation in the dictated report. Yellow category conditions need to be communicated within 72 hours. The table below is the approved list, which may be subject to modification by the department chairperson(s).

Critical Test Results	Red Category Conditions	Yellow Category Condition
	complete within 1 hour	complete within 72 hours
CNS	Cerebral hemorrhage/hematoma Brain tumor (mass effect) Depressed skull fracture Cervical spine fracture Spinal cord compression	Brain tumor (no mass effect)
Neck	Epiglottitis Carotid/vert artery dissection	Critical carotid stenosis New neck mass
Breast		Recommendation for a biopsy
Chest	Pulmonary embolism (acute) Tension pneumothorax Aortic dissection (new) Ruptured or impending aneurysm Mediastinal emphysema (acute)	New lung mass
Abdomen	Pneumoperitoneum (if no recent surgery) Appendicitis Ischemic bowel Portal venous gas Volvulus Traumatic visceral injury Intra/Retroperitoneal hemorrhage (acute) Bowel obstruction (new)	New abdominal mass
GU/OB	Ectopic pregnancy Fetal demise Placenta previa near term Placental abruption Testicular or ovarian torsion	New renal/bladder/pelvic mass
Vascular	DVT Vascular occlusion (acute)	
MSK		New fracture, bone lesion, metastatic disease

Technical deficiencies: Should be documented at Summa with latest electronic method to the technical section manager or by direct phone call.

Performance measures: Physicians must be familiar with and report on performance measures designated in contracts with affiliated hospital systems. These are usually updated yearly and are available in board of directors' meetings minutes and from the facility chairperson. These may include usage of standard reporting templates

Practice building: Physicians and credentialed providers need to treat, referring providers, technologists, nurses, students, and other staff with respect to build relationships. This includes preparing for and attending assigned and other hospital conferences and meetings.

Medical students, residents, and fellows: When on assigned rotations, physicians will interact with students and residents in a professional manner, while performing their regular scheduled shift. If a student is assigned to you as a preceptor, then it is expected that you will interact with them for teaching purposes for up to a few hours in the day.

Avoid distractions: (watching TV, internet videos, children in work area at home) and minimize personal phone calls during work time.

Quality Assurance: All physicians are required to send detected interpretive and procedural error cases as encountered to a quality manager. At the quality manager(s) discretion these cases may be forwarded to the interpreting physician. Cases which cross a certain threshold of clinical significance will be tracked and feedback of such cases will be provided on a routine basis to each physician.

3.18 Expectations for New Physician

A mentor will be assigned to new physician employees to help in the transition to our private practice. A written action plan will be made and acknowledged by the new employee to the Practice Manager. A 360-degree focused professional evaluation will be performed every quarter over the first year with the employee, chairperson(s) of the departments and Practice Manager.

Within two (2) months, new physician will be able to staff an evening position. Within three (3) months of vote for partnership comes up, new physicians should reach the average over the last quarter of 45 wRVUs/shift. In addition, within three (3) months, interventional radiology specialist employees will be able to perform "Angio 1" shifts and take independent overnight call.

Section 4: Employee Benefits & Leave

4.1 Employee Benefits

ARI provides a well-balanced program of benefits designed to meet the needs of employees and provides protection from financial hardship. Our benefits represent a hidden value of additional income to our employees. This Handbook describes the current benefit plans maintained by the Company. Those benefits may include, but are not limited to, medical, health savings accounts (HSA), dental/vision allowance, life insurance, short-term disability, 401(k) plan, profit-sharing plan, education benefits, and an employee assistance program. These benefits will be reviewed periodically to assure that they keep pace with area practice. The Company retains discretion at all times to delete, add to, or make changes to any of the benefits offered. Annual enrollment during open enrollment is required in the Company's benefits administration system. Your eligibility for benefits and the type of benefits you may receive depend on your particular position.

Each insurance has an individual plan policy which details the terms and conditions of the benefit, such as eligibility, coverage, etc. For more detailed information, please refer to the actual plan documents, summary plan descriptions and other information available from the Practice Administrator. If any inconsistency exists between this Handbook and any plan policy, the actual plan policy governs. Coverage and payment decisions are made at the sole discretion of the insurance carrier, not the Company, its Practice Administrator or the Board of Directors.

Premiums for which you may be responsible (for example, dependent health insurance) must be paid by payroll deduction. If you are not receiving a paycheck due to absences or other reasons, you are responsible for paying your insurance premiums directly. Please see the Practice Administrator to make arrangements or if you have any questions.

Eligibility and Anniversary Date. Eligibility for some benefits depends on your employment status. See the section called "Categories of Employment" for more information.

Some benefits are calculated based on your anniversary date with the Company. Your anniversary date is the first day you report to work for us.

4.2 Insurances

4.2.1 Medical Insurance

ARI provides group medical insurance, including prescription drug coverage to eligible full-time employees and dependents. If elected, your coverage under the plan will become effective on day one (1) of eligible employment. Enrollment forms may be obtained from

the Practice Administrator. To assist you with the cost of this insurance, our Company may require that employees pay a portion of a single or a family contract. You would be responsible for paying the balance through payroll deduction. If you are not receiving a paycheck due to absences or other reasons, you are responsible for paying your insurance premiums directly. Please see the Practice Administrator to make arrangements or if you have any questions.

Employees who wish to waive participation in the group health insurance must do so in writing.

4.2.2 Life and Accidental Death & Dismemberment Insurance

ARI offers a Life Insurance plan, which includes Accidental Death & Dismemberment, to full-time employees. Coverage begins on day one (1) of eligible employment and premiums are paid for by the Company. All paperwork to begin this benefit is submitted to the Practice Administrator.

4.2.3 Continuation of Group Health Insurance (COBRA)

If applicable, ARI will comply with federal and state regulations relating to the Consolidated Omnibus Budget Reconciliation Act of 1985 (COBRA), which is designed to provide employees and eligible dependents with the opportunity to continue health insurance coverage at group rates in certain instances in which coverage would otherwise cease. The premium for this coverage is the sole responsibility of the employee or dependent. Further information may be obtained from the Practice Administrator.

4.2.4 Short Term Disability (Physicians and credentialed providers only)

Disability is defined as complete incapacity of Physician to engage in his/her regular employment for a period of two (2) consecutive weeks, resulting from disease or bodily injury.

Vacation Time. Employee must first use any accrued and unused vacation time.

1. Vacation time is accrued at the beginning of each quarter during a vacation year.
2. Currently, full time physicians accrue 2.5 weeks of vacation at the beginning of each quarter.
3. Depending on timing of disability date and timing of vacation schedule, the physician may or may not have vacation time to "use first."
4. If accrued and unused vacation time is not available, then the physician will need to purchase additional vacation time or promise to "pay back" at a later date.
5. If the physician does not "pay back" within 12 months returning to work or termination of employment (whichever is first), the value of vacation days will be deducted from the final paycheck.

6. The Physician does not have the option to use vacation from subsequent quarters, as vacation time is not accrued while on disability. (For example, you cannot use all five (5) vacation weeks in January and February).
7. While using vacation time, this time will be eligible for quarterly bonus calculation/compensation.

Compensation. Compensation while on disability (not vacation) will be limited to base pay (excludes quarterly bonus) and:

- a. Vacation time will not accrue during this time.
- b. Health benefits will continue as usual.

Disability benefits accrue at a rate of 30 days per year of service.

- a. Maximum accrual of 150 days.
- b. May not be utilized until accrual of 60 days (Two (2) years of service).
- c. Once disability benefits are utilized, this will reduce the disability accrual bank.
- d. Disability days will not begin to accrue until the physician returns to work.

Employee will need a Physician's note to return to work.

See excerpts from Physician Employment Agreement detailed below:

4.3.3 Vacation scheduling shall be based upon a July 1 to June 30 schedule ("Vacation Year"). ***Vacation hours shall be accrued at beginning of each quarter*** (for example, if an employee is entitled to four (4) weeks' vacation in a Vacation Year, at the beginning of the 2nd quarter of the Vacation Year the employee has accrued 2 weeks of vacation). ***For purposes of any period of disability of Physician under Section 5, vacation time is prorated according to the number of weeks in the applicable Vacation Year(s).***

5. Disability. Commencing with the date of disability (as defined under Section 14.1 below), ***Physician shall be entitled to receive (i) any unused vacation pay, and (ii) partner's base compensation (240k) for an amount of days of disability then accrued up to a total of 150 days of disability (any unused vacation time must be applied first)*** after which time Physician shall receive no further compensation during a period of disability, unless otherwise provided herein. ***Days of disability are accrued 30 days a year for each year Physician is employed by Employer up to a maximum of 150 days;*** however, Physician shall not be entitled to utilize any of such days of disability until Physician has accrued 60 days of disability. During any period of disability, as defined herein, Employer shall continue to make its agreed upon contributions, if any, for any health and disability insurance coverage provided by Employer to Physician, and in which Physician participates under this Agreement, however, ***no vacation time shall be accrued during any period of disability, and vacation time for a Vacation Year during which a period of disability occurs shall be prorated in accordance with Section 4.3.3.*** If Physician returns to Physician's full duties

hereunder for one (1) full year, immediately upon use of any of Physician's 150 days of disability base compensation payments hereunder, then Physician shall be entitled to up to an additional 30 days of disability base compensation (up to a maximum of 150 days of disability base compensation at any given time) for each one year of service from the date of Physician's return to full duties. If at any time Physician's 150 days of disability base compensation is exhausted while Physician is still disabled, this Agreement shall terminate, unless otherwise agreed in writing between the parties (or, with respect to the disabled Physician, his/her personal representative, where appropriate).

14.1 Disability. "Disability" shall mean a ***complete incapacity of Physician to engage in his/her regular employment for a period of two (2) consecutive weeks, resulting from disease or bodily injury.*** In the event of any disagreement as to whether Physician is disabled, Physician shall be examined by a physician selected by the mutual agreement of both parties, who shall not be an employee of Employer, and the determination of such physician shall be final and binding on all parties.

4.3 401(k) and Profit-Sharing

Full-time employees may make voluntary contributions to the Company's retirement program on day one (1) of eligible employment. After one (1) year of continuous full-time service, the Company will make contributions to the 401(k) program if you are making voluntary contributions.

4.4 Workers' Compensation

The workers' compensation laws of Ohio cover each employee working in that state. Other state laws will apply to those employees whose primary business location is not Ohio. These laws cover medical expenses as well as certain losses of compensation resulting from work-related injuries or illnesses. ARI pays all premiums connected with these benefits. Please note that any work-related injury or illness must be reported immediately to your supervisor or the Practice Administrator.

Prompt evaluation in the emergency department or by employee's personal physician is strongly encouraged. Injury or illness which involves entities with whom Corporation is in a contractual relationship may also require reporting through the contracted entity's mechanism for adverse events. The Practice Administrator or President may assist in determination of any reporting needed outside the Corporation. Employees should first report adverse events to the Practice Administrator or President as reasonably possible before independently reporting to an outside entity.

All employees are expected to follow safety procedures specified by all contracted entities as well as by the Corporation and use provided personal protective equipment as directed by the Corporation or contracted entity when within the physical jurisdiction of Corporation or contracted entity.

4.5 Unemployment

Any employee who is released from employment with the Company for no fault of his or her own may be eligible to receive unemployment compensation. Eligibility and the amount of compensation paid is determined by the Ohio Bureau of Employment Services. The Company pays the full cost of unemployment insurance.

4.6 Leave & Time Off

4.6.1 Vacation

4.6.1.a. Physicians and Credentialed employees

The Company recognizes that employees need scheduled time away from normal work duties for their personal well-being. Physicians and credentialed providers vacation time is defined in their professional contract employment agreement and is subject to periodic alteration by the Corporation dependent upon business needs and performance and subject to board approval as specified in the professional employment agreement. Purchase of additional vacation time off beyond what is provided in the contract is subject to current board approved policy and is dependent on business needs and performance

4.6.1.b. Administrative and support staff

Eligibility. Full-time employees earn paid vacation time on their anniversary date. Years of service determine an employee's eligibility for vacation time and such service time is based upon the number of anniversary years an employee has completed. An anniversary year starts the day you were employed at The Company and ends one year from that date.

Service	Eligible Vacation (based upon 40-hour workweek)
After completing 90 days*	40 hours
After completing years 1 – 4	80 hours
After completing years 5 – 9	120 hours
After completing years 10+	160 hours

*New employees are eligible for 40 hours of vacation time after successful completion of the Evaluation Period to be used by their 1st anniversary date. Failure to complete the first

year of employment will result in vacation time being pro-rated. Any vacation used which was not yet earned must be repaid in the final paycheck(s). All vacation time should be used in the anniversary year in which it was earned. Up to one (1) week of unused vacation time may be carried over into the next anniversary year.

Scheduling. Vacation requests must be made in writing using a form prescribed by the Practice Administrator and submitted to your supervisor at least 14 days prior to the desired vacation time. Vacation may be taken at any time during the year after eligibility with the following provisions:

- Employees are expected to take their paid vacation time as a means of rest and diversion for themselves and their families.
- Vacation must be approved in advance by the employee's supervisor.
- Vacation time must be taken in minimum increments of 8 (eight) hours.
- A holiday observed by the Company that falls during the vacation period will be considered as a paid holiday and not vacation time. This day of vacation may be taken at another time as approved.
- Vacation is to be reported on timesheet.
- Job requirements will always have precedence over vacation schedules. Supervisory approval of vacation requests is at the Company's discretion.
- Non-exempt employees are to be relieved of job responsibilities during vacation.
- Advances of vacation time are not permitted.

Vacation Pay. The following provisions apply with regard to vacation pay:

- Pay for vacation time will be at the employee's regular rate of pay.
- Up to one (1) week of earned and unused vacation time may be carried over to the next year. Any unused vacation time in excess of one (1) week will be forfeited on the anniversary date.
- Paid vacation time will not be considered as time worked for the purpose of computing overtime.
- No pay in lieu of unused vacation time.
- Any earned but unused vacation at time of termination is forfeited.
- Failure to provide two (2) weeks' written notice of termination will result in forfeiture of any unused vacation.

4.6.2 Personal Time and Holidays

4.6.2.a. Physicians and Credentialed employees

Physicians and physician extenders do not have personal time outside of contracted vacation time. Personal time required outside of scheduled vacation time should first be accommodated by individual trades. If this is not possible, then time off must be cleared by Practice Administrator and/or Operations chair(s) to assure that Corporation

responsibilities are met. Such time off is deducted from vacation time or deducted from compensation, as determined by Corporation. Taking non-emergent personal time without prior approval may result in disciplinary action at the discretion of the board of the Corporation.

Physicians' holiday work responsibilities are subject to current policy and needs of Corporation to fulfill contractual responsibilities. Holidays will be scheduled in advance according to board.

4.6.2.b. Administrative and support staff

Full-time employees are eligible for personal time after successfully completing the Evaluation Period.

Eligibility. Employees who report paid time (including regular hours worked, paid vacation, and paid personal time) for at least 38 hours in a pay period will earn .46 hours of paid personal time at the conclusion of the pay period.

Scheduling. Personal time requests must be made in writing using a form prescribed by the Practice Administrator and submitted to your supervisor for approval prior to the desired time off or as early as possible. Personal time may be taken at any time after it is earned with the following provisions:

- Personal time must be approved in advance by the employee's supervisor.
- Personal time can only be used in four (4) hour increments.
- Pay for personal time will be at the employee's regular rate of pay.
- Maximum accrual is 24 hours. No additional personal time will be accrued beyond 24 hours.
- Paid personal time will not be considered as time worked for the purpose of computing overtime.
- No pay in lieu of unused personal time.
- Any unused personal time is forfeited upon termination.

Holidays. Generally, our business is closed **for administrative and support staff** on the following holidays; however, the Company may decide to work on a holiday depending upon job requirements.

New Year's Day (January 1)

Memorial Day (last Monday in May)

Independence Day (July 4)

Labor Day (1st Monday in September)

Thanksgiving (4th Thursday in November)

Christmas (December 25)

Paid holiday time is available to full-time and regular part-time employees upon successful completion of the evaluation period. Part-time employees who work on a regular schedule

are entitled to paid holidays only on a pro-rated basis. Part-time employees without a regular schedule, as well as temporary employees, are not eligible for paid holidays.

To be eligible to receive holiday pay, the employee must work, or report paid time off on the scheduled workdays immediately before and after the holiday.

Paid holiday time will not be considered as time worked for the purpose of computing overtime.

When a holiday falls on a weekend day, Practice Administrator or the President will determine an alternative day to observe the holiday, usually the Friday before a holiday on Saturday or the Monday after a holiday on Sunday.

Full-time hourly and regular part-time employees will be paid for holiday time for any time you would have worked had the office been open. For example, if you normally work 4 hours on Monday and 6 hours on Fridays, and the office is closed on Monday for a holiday, you will receive 4 hours of holiday pay. If the office is closed on a Wednesday, however, you would not receive any holiday pay.

Any full-time non-exempt employee required to work on an official Company holiday is entitled to receive compensation at the rate of one-and-one-half times his/her usual rate of pay in addition to receiving his/her regular holiday pay.

Any employee wishing to observe other religious and national holidays may use any available vacation time, or under certain circumstances, take unpaid time off with advance approval.

4.6.3 Professional Growth Opportunities & Continuing Education

ARI encourages professional development through attendance at seminars and credit and non-credit courses. The course must be related to the Company's general expertise and the employee's responsibilities and duties.

Physicians and physician extenders are provided educational compensation benefits based on board approved policy for educational activities which enrich the pertinent knowledge of these professionals for the benefit of the corporation.

Full-time administrative and support staff employees may be eligible for reimbursement of some of the costs associated with continuing education. Approvals are based upon available funds, potential benefits and value in relation to other available programs. Advance, written approval by the Practice Administrator is required for reimbursement. Any training and education expenses incurred by the Corporation for administrative and support staff are payable in full back to the Corporation if the team member leaves within six (6) calendar months of the date in which payment was made by the Company. Payment

may be withheld from your paycheck for training and education expenses incurred within the six (6) months prior to date of termination.

4.6.4 Jury Duty

ARI encourages employees to fulfill their civic responsibilities by serving jury duty when required. If an employee receives a jury duty summons, they should notify the Practice Administrator as soon as possible so that arrangements can be made to accommodate their possible absence from work.

If you are released from jury duty with at least four (4) hours remaining in your workday, you should return to work for the remainder of the day. Physicians and credentialed providers will not be required to make up work days for required jury duty.

For administrative and support staff, your regular salary will continue as before for each day served, up to 40 hours total. Adequate proof of service must be provided in order to receive your regular salary during your absence for jury duty. When you return to work, you should provide your supervisor with verification from the court of the number of days you served on the jury, and the amount that you were paid per day.

Should extraordinary circumstances exist which would make your absence severely detrimental to the operation of the Company, at the time of your call to jury duty, we reserve the right to contact the court to request that your service be postponed.

4.6.5 Voting

The Company encourages its employees to vote in every election; however, time off is not provided for voting with or without pay. Employees should plan to vote prior to or following normal work hours.

4.6.6 Funeral Leave

The Company's policy is to grant a leave of absence, not to exceed three (3) consecutive working days, to all full and part-time employees experiencing a death in their immediate family. Immediate family members include employee's spouse/partner, parent or legal guardian, biological or adopted children, grandchildren, sibling or anyone who stood in loco parentis to the employee as a child or other person for whom the employee was legally responsible. A leave of absence, not to exceed two (2) consecutive days to all full-time employees for the death of a grandparent, spouse/partner's grandparent or in-laws. If necessary, accrued vacation or personal time or leave without pay may be utilized to supplement allowed days.

Bereavement leave is intended to be used at the time of loss. Personal time off is available for later memorials or ceremonies or as needed. Please let the Practice Administrator know of your need for bereavement or other leave as soon as possible. A memorial card or obituary from the funeral home may be necessary for documentation purposes.

4.6.7 Medical Absences

The Company reserves the right to request an explanatory note from the employee's physician should an absence extend beyond two (2) consecutive working days due to a non-job-related illness or injury. *Failure to provide documentation of illness after two (2) consecutive days may result in disciplinary action.* Physicians and credentialed providers must make up days according to the current approved board policy.

4.6.8 Leaves Without Pay

Any time off which exceeds earned vacation and personal time is unpaid leave. We offer job-protected leave to eligible employees as required by state and federal laws. Where state and federal law does not apply, the Company may approve non-mandatory leaves of absences at its discretion and subject to business needs and operations.

The status of an employee's position and benefits during and at the conclusion of any such leave will be determined by Practice Administrator and communicated to the employee before or at the time the absence is granted. It is important to note that we are not required to offer job protection during a voluntary (non-mandatory) leave.

Eligibility. Employees are to exhaust all available paid time off prior to entering into unpaid leave status.

Leave Request Procedure. Requests for unpaid leave must be submitted in writing and approved in advance by the Practice Administrator and board of directors. The request must include leave start and stop dates with supporting documentation for the leave request. Failure to provide proper notice or documentation may result in denial of leave requests.

The Company will review such requests on a case-by-case basis and determine if business operations are adversely impacted.

You are strongly encouraged to review the Attendance and Punctuality policy contained within this Handbook as well as the Leave & Time Off policy.

Benefits. While on unpaid leave and in active pay status for health insurance purposes, you are responsible for payment of your share of premiums while on leave. See benefit plan documents for complete details.

During an unpaid leave of absence, you will not accrue paid time off. Further, during an unpaid leave of absence, the Company does not make any contributions for Social Security or to a retirement savings program.

Re-Employment Privileges. Upon the expiration of an approved leave, the Company is not required to guarantee a job. If you are unable or unavailable to return to work or if you fail to return to performing assigned duties at the end of an authorized leave, you shall be considered to have voluntarily resigned.

Reasonable Accommodations. Nothing in this section is intended to limit unpaid time off as an accommodation for disability-related needs, if reasonable and necessary under the circumstances. Once you've used up your leave, and if you have a disability covered by the Americans with Disabilities Act, then you may approach the Practice Administrator, President or board of directors about determining whether or not there may be a reasonable accommodation that you may be entitled to.

4.6.9 Family Leave of Absence (Physicians Only)

The purpose of the family leave of absence policy is to allow physicians to take a continuous leave of absence or a reduced schedule leave of absence, in conjunction with the use of paid vacation time, in order to care for a family member (a spouse, parent or child) who has a qualifying serious health condition (a physical or mental illness, injury or impairment that involves continuing treatment by a health care provider).

Requesting a Family Leave of Absence

A request for a family leave of absence must be made in writing at least 30 days before the leave of absence is to commence, or as soon as practicable if the need for the leave is unforeseeable.

Medical Certification

A family leave of absence must be supported by a written medical certification completed and signed by the family member's health care provider. If there is a reasonable basis to doubt the validity of this medical certification, ARI will have the right to require a second medical certification from another health care provider selected by it. If the two (2) medical certifications are inconsistent, the one from ARI's designated health care provider will govern.

Use of Paid Vacation Time

A radiologist who has been approved for a family leave of absence will be required to use his or her paid vacation time during the initial portion of the leave of absence.

Components of a Family Leave of Absence

An approved family leave of absence proceeds in the following stages:

- A radiologist must use all accrued paid vacation time, if any, during the initial portion of the leave of absence. During this portion of the leave of absence, the radiologist is completely off work. The amount of available vacation time will depend on how many vacation weeks have already been used during the six (6)-month vacation scheduling block. Scheduled weekend coverage by another radiologist during this time period will be the responsibility of the radiologist who is on the family leave of absence.
- Once available accrued paid vacation time has been exhausted, a full time radiologist who needs additional family leave of absence time will be advanced, and must use, up to 7.5 weeks of paid vacation time (but no more than this during an 18-month period); and a part time radiologist will be advanced, and must use, a proportional number of weeks of paid vacation time. During this portion of a family leave of absence, the radiologist is completely off work. Since vacation time is being advanced, the annual vacation time to which the radiologist is entitled the following calendar year will be reduced accordingly. The radiologist may, at his or her option, purchase an additional two (2) weeks of vacation time during this portion of the leave of absence period, but only during the current calendar year. Scheduled weekend coverage by another radiologist during this time period will be the responsibility of the radiologist who is on the family leave of absence.
- If additional family leave of absence time is needed after accrued, advanced, and purchased vacation time has been exhausted, the radiologist may elect that any remaining family leave of absence time is comprised of either unpaid continuous leave (during which the radiologist is off work completely), or reduced schedule leave (during which a full time radiologist works on a part time basis, or a part time radiologist's hours are reduced below part time status) that entails a reduction in compensation commensurate with the reduced schedule. ARI may, in its discretion and based on current staffing needs, allow a radiologist who elects a reduced schedule leave of absence to work from home during all or part of the reduced schedule leave.

Maximum Amount of Family Leave of Absence Time

The maximum amount of family leave of absence time a radiologist may take, during a rolling 18-month period, is the accrued, advanced (up to a maximum of 7.5 weeks), and purchased (up to a maximum of two (2) weeks) vacation time the radiologist has used, plus three months of either a continuous or a reduced schedule leave of absence. The rolling 18-month period is measured backward from the date a requested leave period is to begin. Thus, the amount of family leave of absence time a radiologist can take at any

given time depends on the amount of leave time he or she has taken during the 18-month period preceding the commencement of a requested leave of absence.

Maintenance of Insurance Benefits During Family Leave of Absence

During an approved family leave of absence, coverage under ARI's insurance plans, including health insurance, will continue, subject to the terms of the applicable plans.

Consequences of Failure to Return from a Family Leave of Absence

A full-time radiologist will be expected to return to full time status, and a part time radiologist will be expected to return to his or her standard part time status, after the approved family leave of absence time has been exhausted (even if the amount of leave of absence time that has been used is less than the maximum duration permitted under the policy). If a radiologist does not return to full time or part time status (as the case may be) after exhausting approved family leave of absence time, ARI will have the right to terminate his or her employment for good cause in accordance with the radiologist's Physician Employment Agreement.

4.6.10 Maternity, Paternity and Parental Leave

This policy refers to the company's provisions for employees who are expecting a new child in the household and/or require time to care and bond with their newborn. The Corporation endorses the right of its employees to become parents. We are also aware that pregnancy or caring for an infant or a newly adopted child may cause difficulties for them in relation to their job duties. We are, therefore, prepared to support pregnant employees and allow new mothers enough time to recover from childbirth and care for their child.

Maternity/Parental – up to 12 weeks off. Vacation can be used to cover weeks.

Paternity – up to 2 weeks off. Vacation can be used to cover weeks.

4.6.11 Military Leave

Military leave permits employees to fulfill their military obligations as members of the Uniformed Services in accordance with federal and state laws. All employees called to active duty or to Reserve or National Guard training or duty will be granted leaves of absence without pay and reinstatement in accordance with federal and state laws. Military orders should be presented to the Practice Administrator and arrangements for leave made as early as possible before departure. Employees are required to give advance notice of their service obligations to the Company unless military necessity makes this impossible. Please contact the Practice Administrator if you need further information.

4.6.12 Severe Weather Policy

ARI will continue business operations during extreme weather conditions. You are expected to report to work during these periods, unless notified otherwise by the scheduler, Practice Administrator, President or designee. In the event of extreme weather conditions, a weather emergency plan may be put into effect for those working in the essential patient care area. ARI will not close during such an emergency and will maintain its patient care responsibilities. Essential personnel may call local safety agencies to inquire regarding transportation assistance for transportation in emergency situations where the personnel are critically needed. Personnel already on location at locations of business or providing critical services remotely will continue to provide essential services until replacement personnel are confirmed to be in place to provide needed services. It is the currently serving professional's responsibility that critical clinical services are not interrupted by exiting their clinical assignment before replacement personnel are confirmed in place and functional.

Occasionally, severe weather or emergency situations such as fire, power failure, flooding or earthquakes can disrupt Corporation operations and circumstances may necessitate early closing, late opening, or cancellation of work. A determination on opening or closing will be made at the discretion of the Practice Administrator or President. In the event an emergency occurs during non-working hours, employees will be notified by preferred email, text, phone call or other electronic means. Employees may also contact the Practice Administrator or President when in doubt about reporting to work.

Please understand that when driving to a work location is not practical or safe, we ask our employees to use their best judgment. Our employee's safety is the number one priority. If you do not feel comfortable driving to work during a weather emergency, you should contact the Practice Administrator, President or scheduler at least one (1) hour prior to the start of your shift.

If an employee resides in a county that declares a Level 2 emergency, we expect the employee to make a judgment on whether the roads are passable. We would expect employees to make every reasonable effort to report to work in a Level 2 emergency, and to stay home and not report to work if the county they live in declares a Level 3 emergency.

To view the state's weather-related road closures and restrictions, visit the Ohio Department of Transportation's traffic website at www.ohgo.com.

Section 5: Employee Conduct & Safety

5.1 Standard of Conduct

This section contains summaries of policies and expectations related to employment and standards of conduct. These summaries do not represent the complete details, expectations or policies. Employees are responsible for adhering to the standards of our client facilities. Please refer to the Summa Health Code of Conduct or Code of Business Ethics, the Medical Staff By-Laws and the Summa Health System Department of Radiology Rules and Regulations for more information. Medical Staff are also subject to the Summa Health System Code of Conduct Policy 1.28.

ARI expects that all of its employees will conduct themselves with decorum and integrity reflecting with their positions, fellow employees, patients and the Company. Employees should always use good judgment and discretion in carrying out the Company's business. The highest standards of ethical conduct should always be used by employees of ARI. The regulations governing employee conduct and responsibilities have been established in the best interest of the Company, its employees, and its patients.

Accordingly, a violation of these regulations constitutes misconduct on the part of the employee and appropriate disciplinary action will be initiated. These rules are guidelines only and are not all inclusive. Disciplinary action may include, but is not limited to, verbal reprimand, written notice, suspension from work without pay, and/or immediate termination of employment. The Practice Administrator or the President reserves the right to terminate or discipline any administrative or support staff employee and the board of directors similarly reserves the right to terminate or discipline any physician or physician extender as the Company, in its discretion, considers necessary in individual circumstances.

In the event an employee is suspended from work for disciplinary reasons, benefits will not accrue nor will benefits be recoverable during the suspension period.

Examples of Misconduct

The following are only examples of misconduct for which an employee may be subject to discipline and these examples do not constitute a complete or exhaustive list of the circumstances for which discipline will be warranted.

- Falsifying or making material omission on an employment application or making erroneous entries or material omissions on forms, reports, the Company's records or customer records.
- Falsification of any records or reports pertaining to absence from work, claims pertaining to injuries occurring on Company premises, claims for any benefits provided by the Company, communications or records including personnel and production records.
- Unauthorized disclosure of confidential information.

- Gambling or fighting on job sites or Company property.
- Unethical conduct or conflicts of interest.
- Concealing defective work.
- Stealing the Company's property, a customer's property or the property of any employee; hiding, concealing or misappropriation of Company property or the property of other employees or patients; sabotage or willful damage to Company property, or the property of other employees or patients.
- Unauthorized use or sale of any Company-owned property, salvage material or equipment.
- Reporting to work under the influence of alcohol or illegal substances; possession, sale or use of marijuana or illegal drugs or chemicals or consumption of alcohol while working on job sites, in the Company facilities, or in Company vehicles.
- Gross negligence or willful acts in the performance of duties resulting in damage to Company property or injury to others.
- Gross insubordination - a willful and deliberate refusal to follow reasonable instructions by the Practice Administrator, President or board of directors.
- Willfully misusing Company property.
- Violation of the Company's equal opportunity or sexual harassment policies.
- Serious safety violation.
- Not following a reasonable order or failure to perform work assigned or to comply with work and safety rules.
- Violation of Company policies.
- Misuse of Company equipment.
- Gaining unauthorized access to Company records.
- Speeding or reckless driving or unauthorized use of a Company vehicle.
- Use of threatening, profane, vulgar, obscene or abusive language including jokes, posters, etc.
- Pornography or illegal activity on Company devices.
- Use of Company property and resources for personal purposes.
- Demonstration of lack of courtesy towards other employees, patients or vendors.
- Not completing assignment up to the quality required by the Company.
- Failure to report personal injury resulting from an on-the-job work situation.
- Disrespectful or discourteous behavior toward a co-worker, supervisor, client, visitor, vendor, or the general public.
- Absent without notice to the Company, unless a reasonable excuse is offered and accepted by the Company.
- Actual or threatened physical violence toward another employee, a customer, visitor, vendor or the general public.
- Bringing on Company property dangerous or unauthorized materials, such as explosives, firearms or other similar items without the written permission of the President.
- Sleeping while on duty, except for overnight physician call.
- Unsatisfactory performance.

- Unauthorized duplication of Company keys or keys belonging to a client's property or premises.
- Failure to file a police report when in an automobile accident involving a personal vehicle when driving for Company business.
- Failure of an employee who operates a Company-owned vehicle or a personal vehicle for Company business to immediately notify the Company if their driver's license is suspended, revoked or expired, or if they have received a driving-under-the-influence (DUI) citation.
- Failure of an employee to abide by the work schedules set forth by their supervisor.
- Excessively absent from work and/or tardy to work.
- Representing the corporation without authority to do so, or materially misrepresenting the corporation, to outside entities

If you have questions about this policy, contact the Practice Administrator.

5.2 Gifts, Tips, Bribes, Kickbacks & Other Illegal Payments

Bribes, tips, kickbacks and other illegal payments to or from any individual with whom we conduct business are prohibited. Employees are not permitted to accept gifts or tips offered by patients or their families. If a gift or tip is offered to an employee, they must politely decline. Small gestures of food, flowers with thank you notes are excluded.

5.3 Corrective Action

At ARI, it is very important that employees be polite, friendly and respectful toward each other as well as to our patients, referring providers, technologists, administration, students, support staff and others at our work facilities. It is important that all employees work well together in a cooperative manner so that the Company can run efficiently in the best interests of our patients and the business.

We hope that employees will exercise self-discipline so that it will be unnecessary for the Company to impose discipline. However, objectionable and unsatisfactory conduct or performance will not be permitted and will result in disciplinary action, including but not limited to one or more of the following, depending upon the severity of the infraction:

- An oral warning
- A written warning
- A final written warning
- Probation and/or suspension with or without pay
- Termination of employment

Nothing in this policy limits an employee's right or the Company's right to terminate employment at any time, with or without cause or notice.

5.4 Open Door

You are encouraged to discuss any questions, concerns or problems with the Practice Administrator, President, or board representative. Issues are typically best resolved in the department where they originate because those persons most familiar with the issues are best equipped to address them first-hand. If you have presented a problem or a concern to personnel in the area at issue and feel that additional resolution is needed, you are encouraged to express your concerns to the Practice Administrator, President or board representative. Additionally, if you are uncomfortable sharing an issue with local personnel in the area at issue, you may choose to take the concerns directly to the Practice Administrator, President, or board representative.

The Company does not tolerate any form of retaliation against employees solely because they, in good faith, avail themselves of the Open-Door Policy.

5.5 Performance Reviews

Every effort will be made by the Practice Administrator or the President to evaluate the performance of employees. The evaluation consists of a personal interview during which an employee's strengths and weaknesses are discussed, evaluated and recommendations for improvements are made. These interviews also identify the short and long-range goals of employees and determine how they interrelate with the Company's purpose and objectives. We are fair but honest in our evaluation of employee performance. Failure to comply with goals or performance expectations will result in discipline up to and including termination.

Physicians receive performance reviews by the chairperson(s) of the Radiology Department(s). Deficiencies revealed in the performance review process may receive disciplinary action or remediation through the Corporation or medical staff mechanism dependent upon the nature of the deficiency. A performance evaluation does not necessarily mean a change in pay or duties. Any recommendation for promotion, a change of duties or an increase in pay must be approved by the President or Practice Administrator before any change takes effect.

Physicians will also be provided an opportunity to give performance feedback to those in leadership positions.

5.6 Attendance and Punctuality

Regular and on-time attendance is expected by all classifications of employees for efficient operations at ARI. Absenteeism and tardiness are not only inconvenient, but also causes costly problems. While it is recognized that an occasional illness or extenuating personal

reason may cause unavoidable absence from work or tardiness, consistent on-time attendance is required for continued employment.

All employees are required to make an effort to avoid unexcused tardiness and absence. Failure to provide notice of tardiness or to provide notice of being absent pursuant to Company policy will classify your tardiness or absenteeism as unexcused and may lead to discipline up to and including termination.

Unless otherwise notified, employees are expected to be at work on time and work their entire scheduled shift. If an employee arrives late, leaves early, or otherwise alters his/her normal work schedule without prior approval from the Practice Administrator or President, he/she will be expected to make up this time or use paid time off at the discretion of the Company.

Please read the call-off policy. Employees are expected to personally call the Practice Administrator, scheduler or President for any absence or tardiness. Employees are required to call off in advance so that arrangements may be made to alter the distribution of work if necessary.

Any employee who fails to maintain an acceptable attendance record may be subject to disciplinary action up to and including termination. Unexcused absence or tardiness may affect future promotions and/or raises.

If any employee is absent from work for without informing the Practice Administrator, scheduler or President, it will be assumed that the employee resigned voluntarily.

Tardiness. Tardiness applies to returning late from lunch and/or break periods as well as the beginning of the workday without prior approval (unexcused). Employees who are late may be required to use paid time off and may be subject to discipline.

5.7 Progressive Discipline Policy for physician and credentialed employees

Purpose: To provide a structured progressive corrective action process, with intent to improve and prevent a recurrence of undesirable physician and physician extender behavior and performance issues.

ARI reserves the right to combine or skip steps depending on the nature of the offense. Some factors that will be considered are:

1. Whether the offense is repeated despite coaching, counseling, or training
2. The employee's work history
3. The impact the conduct/performance issues have on the organization or patient care.

Nothing in this policy provides any contractual rights regarding employee discipline or counseling, nor should anything in this policy be read or construed as modifying or altering the employment-at-will relationship between ARI and its employees.

Step 1: Counseling and verbal warning

Step 1 creates an opportunity for the ARI board to bring attention to the existing performance, conduct or attendance issue. A personnel committee, approved by the board of directors, should discuss with the employee the nature of the problem or the violation of company policies and procedures. The committee is expected to clearly describe expectations and steps the partner/employee must take to improve his or her performance or resolve the problem.

Within five business days, the committee will prepare written documentation of the verbal warning and suggested counseling. The partner/employee will be asked to sign this document to demonstrate his or her understanding of the issues and the corrective action.

Step 2: Written warning

The Step 2 written warning involves more-formal documentation of the performance, conduct or attendance issues if there is continued failure to meet work/employment expectations (or standards or policy).

During Step 2, the members of the Personnel Committee, the President and/or chairperson(s) will meet with the employee to review any additional incidents or information about the performance, conduct or attendance issues as well as any prior relevant corrective action plans. The discussion will outline the consequences for the physician of his or her continued failure to meet performance or conduct expectations.

A formal performance improvement plan (PIP) requiring the employee's immediate and sustained corrective action will be issued within five business days of a Step 2 meeting. The written warning may also include a statement indicating that the employee may be subject to additional discipline, up to and including termination, if immediate and sustained corrective action is not taken.

Step 3: Suspension and final written warning

Some performance, conduct or safety incidents are so problematic and harmful that the most effective action may be the temporary removal of the employee from the workplace. When immediate action is necessary to ensure the safety of the other employees or patients, the board of ARI may suspend the employee pending the results of an investigation. Depending on the seriousness of the infraction, the physician may be suspended. This will be decided by the ARI board with possible consultation from HR.

Step 4: Recommendation for termination of employment

The last and most serious step in the progressive discipline process is a recommendation to terminate employment. Generally, ARI will try to exercise the progressive nature of this policy by first providing warnings, issuing a final written warning, or suspending the employee from the workplace before proceeding to a recommendation to terminate employment. However, ARI reserves the right to combine and skip steps depending on the circumstances of each situation and the nature of the offense. Protocols for termination will follow established ARI guidelines.

Appeals Process

Physician and physician extenders will have the opportunity to present information to dispute information the committee has used to issue disciplinary action. The purpose of this process is to provide insight into extenuating circumstances that may have contributed to the employee's performance or conduct issues while allowing for an equitable solution. If the employee does not present this information during any of the step meetings, he or she will have five business days after each of those meetings to present such information.

Performance and Conduct Issues Not Subject to Progressive Discipline

Behavior that is illegal is not subject to progressive discipline and may result in immediate termination. Such behavior may be reported to local law enforcement authorities.

Similarly, theft, substance abuse, intoxication, fighting and other acts of violence at work are also not subject to progressive discipline and may be grounds for immediate termination.

Documentation

The employee will be provided copies of all progressive discipline documentation, including all performance improvement plans. The employee will be asked to sign copies of this documentation attesting to his or her receipt and understanding of the corrective action outlined in these documents. Copies of these documents will be placed in the official personnel file.

5.8 Family Emergencies

In the event the office receives word of an emergency related to a member of an employee's family, the employee will be notified as soon as possible. Should the employee be at a location away from his/her normal workplace, arrangements will be made to contact the employee, and if necessary, arrange for the employee to return home immediately. If an employee is notified of an emergency requiring their departure from work, they should notify the Practice Administrator or President. Notification of a board representative is acceptable if the Practice Administrator or President are both unavailable.

5.9 Drug and Alcohol-Free Workplace

The use of illegal drugs and alcohol, and the abuse of legal prescription pharmaceuticals, account for tremendous losses in efficiency, attendance and costs of Company-provided health care. These abuses also diminish the safety of all employees and visitors, impair the reputation of the Company, and violate state and federal laws. In addition, the use and abuse of drugs and alcohol can have severe health consequences and lead to the destruction of family unity. For these reasons, the Company has adopted a zero-tolerance drug and alcohol policy. With this policy, it is the intention of the Company to use every lawful means to establish and maintain a drug and alcohol-free workplace.

Alcohol. Consumption of, possession of, or being under the influence of alcoholic beverages on Company property, in the office, at a client site or in any vehicle used for Company business is strictly prohibited. Any employee who violates this policy will be subject to disciplinary action including immediate termination of employment. Any employee who reports for work or who is at work is subject to blood/alcohol testing to determine the presence of alcohol in the body.

Drugs. Illegal drugs are substances that are controlled or outlawed, are not obtainable by lawful methods, or are legally obtainable but were not obtained in a lawful manner.

This policy prohibits the use, sale, manufacture, distribution or possession of illegal drugs, drug paraphernalia or any combination thereof, on any Company premises or at any location where the employee is performing his/her job duties. This includes off Company premises. Violation of this policy will subject the employee to disciplinary action up to and including immediate discharge and may have legal consequences.

The Company shall have the right to require any employee to submit to drug and/or alcohol testing under the following circumstances:

1. Pre-Hire - As part of our pre-hire screening procedures.
2. Post-Accident – Where the employee was involved in an accident that resulted in property damage or physical injury, requiring professional medical treatment beyond first aid, to any person.
3. Reasonable Suspicion – Upon the belief of Practice Administrator or the President that the employee may have alcohol or illegal drugs in his/her system while at work or while performing job duties away from the workplace.
4. Post-Leave – As a matter of standard practice when the employee has been absent from the workplace on any form of leave for 60 or more days.

This list is not meant to limit the circumstances under which a drug or alcohol test may be required. The Company can test for the presence of alcohol or illegal drugs for other lawful purposes at any time.

For purposes of this policy, a positive or failure of a drug or alcohol test shall consist of the presence of any detectable amount of an illegal drug or alcohol in the employee's system when tested. Similarly, refusal to submit to a drug or alcohol test or fully complete the test when requested by the Company, or any attempt to interfere with the test or alter the sample, also constitutes failure of the test and will result in discipline up to and including discharge.

If an employee is using medication prescribed by a licensed physician, the employee is responsible for obtaining assurances from that physician that the medication will not impair the employee's judgment or ability to safely and efficiently perform his job duties.

Any employee who knows or believes that there is unlawful involvement by other employees, vendors or guests with illegal drugs or alcohol contrary to this policy, should immediately refer this information to the Practice Administrator or President. The Company will utilize all lawful investigative techniques in response to this information. Evidence obtained by the Company of the unlawful use, manufacture, trafficking, distribution or possession of controlled substances will be provided to the appropriate law enforcement authorities.

This policy does not limit the right of the Company to invoke disciplinary action for any unauthorized activity not enumerated above.

5.10 Tobacco-Free Workplace

ARI is dedicated to providing a healthy, comfortable, productive work environment for our employees as well as a healthy, comfortable environment for our patients. This goal can only be achieved through ongoing efforts to protect non-smokers and to help employees adjust to restrictions on smoking. Therefore, the use of tobacco, including smokeless tobacco, e-cigarettes, and chewing tobacco, is prohibited throughout Company facilities, client sites and in Company vehicles. The Company or its clients, at its discretion, may designate an approved area for tobacco use.

The success of this policy will depend upon the thoughtfulness, consideration and cooperation of smokers and non-smokers. All employees share in the responsibility of adhering to and enforcing this policy. Any conflict should be brought to the attention of the appropriate supervisory personnel.

5.11 Safety

5.11.1 Shielding Devices

See details in Shielding Devices Policy for apron use and care. Employees will follow current policies for personal protective equipment (PPE) existing at locations of service.

Employees will care responsibly for any PPE issued to them by an entity contracted with the Corporation and will follow policy and procedure for that entity's PPE.

5.11.2 Radiation Safety Information

See details in Radiation Officer Responsibility for Radiation Protection, Radiation Safety Education Orientation for Occupational Employees, and Radiation Safety for Non-Occupational Employees Policies for more information.

Employees will be provided with safety equipment if it is a requirement for a particular job. This equipment will be signed for by the employee and replaced at the employee's expense if the equipment is lost, damaged, or stolen. Replacement will be provided if the equipment is shown to be defective. Employees are to notify the Practice Administrator or the President immediately if equipment is broken.

5.12 Company Tools and Equipment

The Company will furnish some necessary tools and equipment to complete job assignments. Each employee is reminded that all items purchased by the Company are the property of ARI and represent a valuable asset of the Company. It is the responsibility of the employee, to whom tools and equipment are assigned, to maintain and safeguard these assets as if they were his/her personal property.

An inventory of tools and equipment will be made periodically. If it is determined that an employee is negligent in the proper storage of tools, materials, or supplies or they are misplaced or stolen, the employee will be asked to replace same at fair market value or reimburse the cost of the item through deduction from the employee's pay check.

When leaving a work area, it is required that all tools be placed back in designated storage areas or removed from the work area and secured in locked storage where available.

Employees are responsible for maintaining equipment in working and safe condition and to adhere to proper use guidelines as established by the manufacturer and/or safety training. Employees are not permitted to remove safety features from equipment. Failure to follow this policy may result in discipline up to and including termination.

Employees are similarly expected to safeguard and responsibly use and store equipment provided by contracted entities in the course of conducted contracted services. Failure to appropriately care for equipment may jeopardize corporate relationships and may be subject to disciplinary action through the Corporation.

5.13 Care of Company Equipment and Facilities

Employees should be concerned with the care and safe use of Company-owned equipment and facilities. Employees are expected to follow all operating instructions, safety standards and guidelines. Good housekeeping is expected of every employee.

If any equipment, machines, tools, vehicles, etc. appear to be damaged, defective, or in need of repair, immediately notify the Practice Administrator, President or appropriate hospital personnel, if equipment belongs to the contracted entity. Prompt reporting of damages, defects, and the need for repairs could prevent deterioration of equipment and possible injury to employees or others.

Unsafe, destructive, careless, negligent, or improper use or operation of equipment, whether belonging to the Corporation or a contracted entity may result in disciplinary action up to and including termination of employment.

5.14 Personal Property

The Company recognizes an employee's desire to display mementos pertaining to family or other personal items. While the Company can take no responsibility for the safekeeping of these items, it welcomes its employees to personalize their work areas for added comfort or pleasantness. However, several guidelines must be observed. They are as follows:

- **Safety Comes First** - No object can interfere with job safety as viewed by Practice Administrator or the President.
- Nothing can be displayed that (in the opinion of Practice Administrator or the President) is derogatory to any person or system of beliefs, is offensive, vulgar, obscene or harassing.
- Objects that (in the opinion of Practice Administrator or the President) are inappropriate or hinder work efforts will not be allowed and must be removed upon request.
- Offensive odors, noisemakers, loud music, etc. are not acceptable at work.

The Company and customer are not responsible for any loss, whether electronic or physical, of any personal property brought to the workplace or used for work. Our insurance does not cover this type of loss. Therefore, we encourage you to leave your personal property at home or make sure personal property is secure while at work.

5.15 Mail

The mail system is reserved for business purposes only. Employees will not be allowed to send or receive personal mail at the workplace.

5.16 Security

All doors, files, desks, gates, and any other equipment with locks must be kept locked securely when not in direct use and at the end of each day. Locks should be checked regularly. Company vehicles should be kept locked at all times when not in use. Lost keys must be reported to the Office immediately. All passwords and codes will be used securely and not shared with unauthorized users. All electronic patient information will be used and secured in accordance with applicable privacy regulations. Any concerns about security should be directed to the Practice Administrator or President.

5.17 Break Area

The Company provides a break area equipped with a microwave, kitchen facilities, and refrigeration for the convenience of our employees. Employees are encouraged to use the break area for their scheduled break and/or lunch period. Employees owe it to fellow employees to keep the break area neat and clean.

5.18 Office Access

ARI employees should access the Company corporate office(s) solely for work purposes; no personal use is permitted. No weekend access or after hours/before hours access is permitted without prior authorization by the Practice Administrator or President.

Only visitors that have business with ARI or other authorized individuals are permitted in the office(s). Brief personal visits are okay, but please keep them to a minimum and make sure they do not interfere with your work, the work of others or business operations.

Policies and procedures governing access to the locations and facilities belonging to contracted entities will be respected and followed.

Violations of this policy will result in discipline up to and including termination.

5.19 Recordings in the Workplace

Given the nature of our workplace and the vital need for confidentiality of our patients and their records, the use of recording devices during worktime is prohibited. "Recording devices" include any electronic means of audio or photographic recording such as mobile phones, tablets, handheld recorders, MP3 players, cameras, etc. Cameras or camera-equipped devices shall not be activated on ARI property without prior authorization of the Practice Administrator, President or chairperson(s) of the Department of Radiology.

Keep in mind that some recordings are not only against ARI's rules but may also violate certain laws including laws against recording without consent which can carry criminal penalties.

This provision is not intended to prohibit you from engaging in protected, concerted activities to address the terms and conditions of employment or to otherwise exercise your employment rights. Rather, this provision is intended to safeguard the confidentiality interests of the Company's trade secrets and confidential information. See the Confidentiality and Non-Disclosure provisions for further explanation about "confidential information."

5.20 Romantic Relationships at Work

You are encouraged to keep relationships with co-workers on a professional level at all times. We understand, however, that sometimes co-workers develop a mutual romantic interest. If this happens, you need to make the Practice Administrator or President aware of the relationship. We also strongly encourage you to let us know if you are in a relationship with a person that may appear to create a conflict of interest, for example an employee of the Company's client or medical provider. You will not get in trouble or be disciplined for these types of relationships; rather, we may make operational decisions that are best for you, your romantic partner and the Company.

Keep in mind that any type of romantic or sexual activity *during* work hours, or on Company property, at any time, is strictly prohibited and grounds for immediate termination.

If you ever feel uncomfortable by the actions of a co-worker at any time, including after a romantic relationship ends, please let the Practice Administrator or the President know so we can help.

5.21 Official Company Communications

ARI may provide all full-time employees with a Company email address for work purposes and to communicate official Company notices. Employees should check their work related email regularly.

5.22 Communications Systems

Company communications equipment is the sole property of ARI. Communications equipment and services include mail, electronic mail (email), courier services, facsimiles, telephone systems, computers, computer networks, on-line services, internet connections, computer files, video equipment and tapes, tape recorders and recordings, pagers and cell phones.

Online services may be accessed only by employees specifically authorized by ARI. Employees' online use should be limited to work related activities.

Employees should not use ARI's communication services and equipment for personal use except in emergencies or when circumstances warrant it. When personal use is unavoidable, employees must properly log any user charges and reimburse ARI for them. ARI communications property or equipment may not be removed from the premises without written authorization from the Practice Administrator or President.

Employees are expected to maintain the same standards of behavior when during any authorized use of the communications systems of any contracted entity. Unauthorized use of communication systems of a contracted entity may result in discipline or termination by the Corporation.

The Corporation will use available communication system to provide pertinent business information to employees. Employees are responsible for reading the information provided through the corporate information systems. Failure to read corporate communications does not release employee from responsibility for following any policy or instructions contained in the communication

Improper use of ARI's communications services and equipment include any misuse as described in this policy as well as any harassing, offensive, demeaning, insulting, defaming, intimidating, or sexually suggestive written, recorded, or electronically transmitted messages.

5.23 Violence

ARI is committed to providing a workplace that is free from acts or threats of violence. In keeping with this commitment, the employer has established a policy that provides "zero tolerance" for actual or threatened violence against co-workers, visitors, or any other persons who are either on our premises or have contact with employees in the course of their duties. Security and safety in the workplace are every employee's responsibility. It is therefore essential that every employee understand the importance of safety and security.

5.24 Weapons

Generally, the possession, use, transfer, or sale of any type of weapons is strictly prohibited on work property or client sites, while operating Company machinery, equipment, or vehicles, and anywhere else while engaged in Company business. "Weapon" is not limited to firearms and includes any object that can cause bodily harm (knives, explosives, stun gun, etc.).

Under very limited circumstances authorized by law, some firearms may be allowed with the advanced knowledge and permission of the Practice Administrator or President.

Employees who are aware of violations or threats of violations of this policy are required to report such violations or threats of violations to the Practice Administrator or President immediately. Violations of this policy will result in disciplinary action, up to, and including, discharge.

5.25 Personal Appearance

Personal appearance, proper hygiene and appropriate attire are important to our work practices. Our patients gauge the quality of our Company by the attention we show to personal appearance and attire, as well as to the service we provide.

Without unduly restricting individual tastes, the following personal appearance guidelines should be followed:

- Beards are permitted if they are properly groomed and manicured and do not interfere with safety equipment. Unkept beards are not permitted. Discuss with the Practice Administrator if you need an accommodation of this policy as a result of disability or religion.
- All employees must keep their hair neat and clean. Hair may need to be pulled back and secured for safety purposes.
- Extreme colored hair and hairstyles do not present an appropriate professional appearance.
- Excessive makeup is not permitted.
- Offensive body odor and poor personal hygiene is not professionally acceptable.
- Strong colognes and perfumes should be avoided.
- Jewelry should not be functionally restrictive, dangerous to job performance, or excessive (long necklaces, dangling earrings, bracelets).
- Facial jewelry, such as eyebrow rings, nose rings, lip rings and tongue studs, are not professionally appropriate and must not be worn during business hours or when representing ARI.
- Torso body piercing with visible jewelry that can be seen thorough or under clothing must not be worn during business hours or when representing ARI.

Our contracted entities may also have specific appearance guidelines that may apply to you. Contact the Practice Administrator if you have questions about this policy or to request accommodation for religious expression.

5.26 Dress Code

Our employees need to project a professional image for our patients, potential employees, and community visitors. Each employee personally represents the Company and is required to dress in an appropriate manner for the position and work environment.

ARI has established minimum appearance standards for employees. Some areas may develop standards that exceed these expectations depending on specific operational needs. The following factors have been taken into consideration in defining the appearance standards policy:

- Patient safety
- Staff safety
- Public safety
- Infection prevention
- Job responsibilities
- Professional image

Hospital issued name badges should be worn when in direct patient care areas.

ARI may issue uniforms or career apparel to employees for identification as a member of a specific department and/or employees whose job duties result in dirty clothing. These uniforms are ARI property and are on loan to the employee, unless purchased by the employee. Employees are required to return uniforms upon separation of employment from ARI.

These guidelines will help you determine what is appropriate to wear to work.

- Clothing that works well for the beach, yard work, dance clubs, exercise sessions, and sports contests may not be appropriate for a professional appearance at work.
- Clothing that reveals too much cleavage, your back, your chest, your feet, your stomach or your underwear is not appropriate at a place of business, even in a business casual setting.
- Clothing should be pressed and never wrinkled. Torn, dirty, or frayed clothing is unacceptable. All seams must be finished.
- Any clothing that has words, terms, or pictures that may be offensive to other employees is unacceptable. Clothing that has the company logo is encouraged.
- Shoes must provide safe, secure footing, and offer protection against hazards. Flip flops, open-toed shoes and tennis shoes are not approved footwear.

Contact the Practice Administrator if you have questions about this policy or request accommodation for religious expression.

5.27 Safety and Health

ARI is committed to providing a safe and healthful working environment. Every effort is made to comply with relevant federal and state occupational health and safety laws and to develop the best feasible operations, procedures, technologies, and programs conducive to such an environment.

All employees are expected to adhere to proper operating practices and procedures designed to prevent injuries and illnesses. The responsibilities of all employees in this regard include but are not limited to:

- Exercising maximum care and good judgment at all times to prevent accidents and injuries
- Promptly reporting any and all accidents or injuries to supervisors/managers and seeking first aid for all injuries, regardless of how minor;
- Promptly reporting unsafe conditions, equipment, or practices to supervisory personnel;
- Using safety equipment provided by Company at all times;
- Conscientiously observing all safety rules and regulations; and,
- Keeping personal work areas clean and orderly. Before departing in the evening, employees should lock all files and cabinets and clear all work materials from desk surfaces and floor.

Safety Program

It is necessary that the Company establish safety rules and regulations to be observed by all employees at all times. Any employee who disregards any Company safety rule and/or regulation is subject to disciplinary action including termination of employment.

With regard to these rules, the following will be considered standard procedure for all employees:

- Should a safety regulation be modified so that an employee's safety is something less than it should be the employee should inform the Practice Administrator or President.
- All questions concerning the reason for doing something in a certain manner may be asked of the Practice Administrator or the President at any time.
- Employees' decisions should always be guided by the Company's commitment to safety.
- Should a hazardous situation or condition exist, and a decision has to be made on safety or production, safety concerns should always take precedence over production.

It is the Practice Administrator or the President's responsibility to see that every employee at ARI is provided with safe working conditions, all safety regulations are observed, and employees use good common sense to protect themselves as well as others. The Practice

Administrator, President or Chairperson(s) will periodically inspect working conditions and may suspend all work activity until an unsafe condition is corrected.

The most important part of safety is YOU. It is your responsibility to abide by the safety rules - these rules are made for your protection. Report any personal injury IMMEDIATELY, however minor. Report all dangerous conditions and practices to the Practice Administrator, President or Chairperson(s).

Safety Rules

The following is not a complete list of safety rules and these rules are not intended as a substitute for common sense and good judgment.

- No open-toed shoes.
- Know where the fire extinguishers are located and know how to use them.
- Extension cords used with portable electric tools and appliances shall be of the three-wire type. Cords shall be replaced on the day which they become defective.
- Read all Material Safety Data sheets supplied with hazardous materials and abide by the instructions. Direct any questions to your supervisor.
- Employees should check with the Practice Administrator or President regarding any potentially hazardous material.
- Practice good housekeeping. Keep work area neat, clean and free from stumbling hazards, grease, etc.
- Learn to lift the correct way. Bend knees, keep back erect, get help for heavy loads.
- No scuffling or horseplay on the job.
- Do not run. Keep firm footing and proper balance at all times.
- Keep materials out of walkways.
- Use equipment only for its intended purposes. Do not use broken equipment.
- Do not attempt to operate special machinery or equipment without permission and instructions.
- Do not repair or adjust machinery while it is in operation.
- Special customer requirements for safety, including the government's, may apply to projects on which the Company is working. Employees will be advised of these situations and expected to follow these policies and procedures.

See safety gear required for radiology department as described in Radiology Department Rules and Regulations.

Hazardous Wastes

The Environmental Protection Agency (EPA) has grouped certain chemicals and chemical groups into categories which have been defined as toxic. This means that in concentrated forms or by accumulating and combining with other chemicals (even the air) these chemicals can be hazardous to human health if exposure occurs.

From time to time in the normal course of their jobs, employees may handle materials which have been classified as hazardous by the standards of the Occupational Safety and Health Act (OSHA) regulations.

Hazardous materials that are received from our suppliers should have Material Safety Data Sheets (MSDS) or labels which state the chemical ingredients of the contents, precautions to take, and what to do if exposure occurs.

Employees will be instructed on how to control hazardous wastes and what to do if they are exposed to hazardous wastes.

If any employee suspects that the materials or wastes he/she may encounter as an employee are hazardous (whether or not they are being created or used by the Company), he/she should inform the Practice Administrator, President or appropriate responsible hospital personnel immediately.

As a Company, we are committed to not creating or disposing of hazardous wastes which will contaminate the environment. Whenever possible, we will choose materials which have been judged as non-hazardous and will properly dispose of hazardous materials if used. Also, we will not knowingly dump any wastes into the environment at any time.

5.28 Accidents and Injuries

If any individual suffers significant injury or illness due to work-related accident, please call 911 immediately. Non-emergency treatment should typically be sought at urgent care or primary physician.

When any accident, injury, or illness occurs while an employee is at work, it must be reported to the Practice Administrator or President as soon as possible regardless of the nature or severity. Employees may be required to complete an injury report. The Company will provide the proper forms for reporting job-related accidents, injuries and illnesses. Injuries or illnesses attributable to the work environment that is the responsibility of a contracted entity should be reported through the client's incident mechanism as well as being reported to the Corporation. Any employee failing to report such occurrences will be subject to disciplinary action.

Treatment will be paid thorough the state's Bureau of Workers' Compensation for workers' compensation claims.

In the event of a vehicular accident involving a Company-owned/leased or rental vehicle or while on Company business, the employee must notify the proper authorities so a police report can be filed and an ambulance can be dispatched, if necessary. The employee is also required to report all information immediately to the Practice Administrator so the

insurance company can be notified. In no instance should responsibility for an accident be expressed to anyone until the proper person in the Company has been notified and permission has been obtained to make statements.

5.29 Fitness for Duty

Each employee is required to report to work in an emotional, mental and physical condition (including free of the effects of alcohol and drugs) necessary to perform his or her job in a safe and satisfactory manner and to discuss with his/her supervisor any circumstances that may impact his/her ability to do so. The Company may require professional evaluation of an employee's physical, emotional or mental capacities to determine his or her ability to perform essential job functions. Non-compliance with a request for a fitness for duty evaluation shall be cause for disciplinary action.

5.30 Solicitation and Distribution of Materials

To prevent disruption of business activities, to minimize distractions for all employees, and to preserve Company security, solicitation and/or distribution of literature, materials, goods, contest promotions, requests for donations, or any other solicitation and/or distribution is prohibited during working time or in work areas.

5.31 Statements to the Press and Others

The President and the Practice Administrator are the only official spokespeople for the Company with regard to the media. All media questions should be referred to one of them. Employees are prohibited from making unauthorized statements to the press and third parties without the express permission of the Company.

The President and Practice Administrator are the only individuals with authority to enter into agreements or assurances on behalf of the corporation unless otherwise determined by board or shareholder action. An employee making unauthorized transactions, agreements or assurances with a client will be subject to discipline or termination.

5.32 Health Insurance Portability and Accountability Act (HIPAA)

The Health Insurance Portability and Accountability Act of 1996 (HIPAA) is a federal law that applies to health plans, health care providers and health care clearinghouses. The HIPAA legislation is complex and has many components. The three areas of legislation that are the major focus for ARI include:

- Privacy – provides rules in regard to how the privacy of an individual's health information must be protected.

- Transaction and Code Sets – requires the use of standard transaction formats and code sets when an individual's financial and/or health information is transmitted electronically.
- Security – requires specific security measures to be in place to protect an individual's health information that is sent or stored electronically.

ARI provides all new employees with HIPAA training. Violations of HIPAA are extremely serious and may result in corrective action up to and including termination.

Confidential Information and HIPAA

Employees must take necessary precautions to reduce the risk of incidentally disclosing protected health information (PHI) to unauthorized individuals. For example, avoid discussing PHI in public areas (such as the cafeteria, elevator, etc.) where there is an increased risk of the conversation being overheard; safeguard PHI in your possession against unauthorized access (i.e. avoid leaving PHI displayed on computer monitor, do not leave PHI in an open, unattended area, etc.).

Sharing of access privileges (passwords, badges, access codes) assigned to you is prohibited and you are accountable for them and any improper access of information that may be gained.

Employees must take reasonable measures to protect their access privileges. If you have reason to believe that your access privileges have been compromised, you must immediately notify your supervisor, the Practice Administrator or the President.

It is strictly prohibited to access your own PHI or that of a relative, friend, another associate, etc. unless in accordance with your job responsibilities or with appropriate authorization. Activities in the computer system are tracked and audits are conducted. Any inappropriate access is grounds for immediate dismissal and possible legal action.

5.33 Confidentiality and Non-Disclosure

In connection with your employment, you signed an Employment Agreement which included Confidentiality and Non-Disclosure provisions. We require strict adherence to those provisions.

Confidential Information. As an employee of ARI, you will receive information about ARI, as well as information about or from our Patients, Suppliers and/or Business Associates, which is confidential to all parties. We may also have a contractual or legal obligation to maintain the confidentiality of such information. Consequently, ARI desires to protect the confidentiality of this information, its trade secrets and other proprietary

information ("**Confidential Information**"). You agree to not disclose confidential financial data, or other non-public proprietary Company information and to not share confidential information regarding business partners, vendors or patients. You acknowledge that the disclosure or dissemination of such information would cause great harm to all parties.

ARI makes great effort to maintain and protect the confidentiality of Confidential Information and prevent it from disclosure to persons or entities outside of our Company or to the public in general. *You agree to do the same and use all reasonable measures necessary to avoid any disclosure, including accidental disclosure, of Confidential Information and to protect it from public exposure. This includes, without limitation, securing paper or electronic information, work devices such as laptops and other mobile devices, and verbal and electronic communications against unauthorized access or disclosure.*

Your promise to maintain the confidentiality of Confidential Information of ARI, our Patients, Suppliers and/or Business Associates is a condition of your employment. You understand that any breach of your confidentiality obligations will result in termination of employment; and if any legal or other action is necessitated by your breach, you will be responsible for all costs, including attorneys' fees, of such action.

The following list includes *some*, but not all, of ARI's Confidential Information you may receive or have access to during your employment with ARI:

- The use of ARI as a trade name for Akron Radiology, Inc.
- The type, design, specifications or nature of ARI products and services
- Patient, Client, Supplier and Business Associate identities, locations, lists, contact information, needs, assessments, studies, projects and related information
- The existence, manner, terms and conditions of ARI's relationship with any Patient, Client, Supplier or Business Associate
- The identity of ARI's Suppliers, the location of such Suppliers and the nature of ARI's relationship with its Suppliers
- The method and means of delivering products or services to the marketplace and/or delivering to Patients, and other methods of distribution unique to ARI
- Company's equipment, formula and methods used to value, quote, describe and prepare Company products and services for the marketplace
- Request for Proposals (RFP) under consideration by the Company whether or not yet submitted; completed or pending proposals; and Company's propriety process for evaluating, developing and submitting proposals
- Company's training methods, modes and utilization; and the content of that training
- Company's employment manual, administrative policies and Company procedures
- Company financial data including, without limitation, budgets, profit/loss sheets, asset valuation, financial forecasts, bookkeeping, liabilities, debts, credits, accounts payable/receivable
- Methodologies used to sell, provide or advertise Company's products/services, including without limitation, packaging and promotion of the products or services,

logistics of delivery, and shipment methods, sales margins, pricing and similar information Company pricing models and rates to current Patients and Prospective Patients

- Other Company practices, processes, or methods which are unique to the Company and give it a competitive advantage
- Company's marketing methods, strategies and efforts, business strategy, plans, ideas or projects
- Market research and other market information gathered or gained by ARI's efforts
- Other research, development and technological strategies and advancements Ideas, strategies, recommendation or insights developed as a result of ARI and Employee's relationship
- Development or augmentation of markets for the products or services; and methods for creating market demand, and positioning of products or services in the marketplace
- Any other information that qualifies as trade secret under law
- Any other information the Company classifies as "private" or "confidential"
- Confidential information does not include information which is generally known to the public through no wrongful act or omission of any party.

Non-Disclosure

All files, records, documents, specifications, equipment and similar items relating to the business of the Company, whether prepared by the Employee or otherwise coming into the Employee's possession in the course of Employee's employment, shall remain the exclusive property of the Company.

Unless Employee receives the prior written consent of the Company, Employee agrees never to disclose, use, copy, download, retain or transfer, in any manner whatsoever, any of Company's Confidential Information or the Confidential Information of its Patients, Suppliers, and Business Associates except in the course of Company business. Non-disclosure applies to all Confidential Information whether written, recalled from memory, electronic or in any other form.

You also agree not to give access to software, databases, computers, paper or electronic files, administrative rights or ARI's facilities or supplies to any person unless specifically authorized in writing to do so by the President or Practice Administrator.

Return and Non-Transmittal of Confidential Information

Employee agrees that by no later than the close of business of Company on the date employment terminates or whenever requested, to return to Company all Confidential Information, Company documents and other Company property in his/her possession or control (and all reproductions thereof in whole or in part and in any medium), including, but not limited to, all Company files, notes, financial and operational information, customer lists and contact information, product and services information, research and development information, drawings, records, plans, forecasts, reports, payroll information,

spreadsheets, studies, analyses, compilations of data, proposals, agreements, sales and marketing information, personnel information, specifications, code, software, databases, computer-recorded information, tangible property and equipment, and any materials of any kind which contain or embody any Confidential Information.

You also agree to return ARI's physical property such as keys, computers, mobile devices, credit cards, fobs, identification badges, files and similar property upon the termination of your employment or when requested. Property must be returned in the same condition, less normal wear and tear, as when you received it. If you fail to return ARI property or you return it damaged, you may be responsible for the costs and authorize deduction of the same from your pay as permitted under the law.

In addition, if Employee has used any personally owned computer, server, or email system to receive, store, review, prepare or transmit any confidential or proprietary data, materials or information of the Company, then no later than the close of business of the Company on the Termination Date, Employee must permanently delete and expunge such confidential or proprietary information from those systems without retaining any reproductions (in whole or in part).

In addition, Employee agrees to provide, upon request, all login and password information needed to access any Company or client technology, programs or any other work-related resources.

Should the Company pursue legal action to enforce any provision of this Agreement, the Employee will be responsible for all attorney costs, filing fees, or other costs incurred in enforcing this Agreement or any subject matter thereof whether in court, by arbitration, mediation or other recourse; and will reimburse the Company for the same.

Two Important Considerations About Confidential and Trade Secret Information:

- 1. This provision is not meant to prohibit or preclude the disclosure of non-confidential information for the purpose of engaging in protected, concerted activity or to discuss the terms and conditions of your employment for the purposes of exercising your employment rights. However, disclosure for malicious reasons, such as knowingly making false statements, to gain a competitive advantage, or in violation of the law, is strictly prohibited.*
- 2. An employee who discloses a trade secret or other confidential information in confidence to a governmental official (federal, state, or local) or to an attorney solely for the purpose of reporting or investigating suspected violations of the law will be granted immunity from trade secret violations. In other words, this "whistleblower immunity" protects you if you need to share a trade secret with a government official or attorney for the sole purpose of reporting or helping to investigate suspected legal violations. This immunity also applies to trade secrets shared in lawsuits or court*

documents, as long as those documents are filed under seal (meaning the court will give the documents special protection from public exposure).

5.34 No Expectation of Privacy

There is no privacy in any tangible or electronic Company- or customer-provided property, including computers, tablets, cellular phones, and other devices and work-related or personal use of our network. All use, including internet, email, or phone, may be monitored on a regular basis to ensure that you are remaining productive and not violating any of our Company policies, including harassment, retaliation, discrimination, etc. All emails, downloads, messaging, contacts, business-based social media accounts, etc. are considered property of the Company and are subject to search, even when you are accessing personal accounts using Company resources.

Likewise, there is no privacy in any of the Company's or customer's physical property or personal property located in or around our office or other work-related locations. All locations are subject to search at any time. These searches can take place without notice and can include property even if it is locked, such as desks, file cabinets, vehicles, etc.

5.35 Ownership

All electronic communications, including email, voicemail, downloads, messaging, etc. generated or received using Company property such as cell phones, computers, tablets, phone, networks, etc., is the property of the Company. The same work-related communications, documentation, or information housed in electronic form on a device owned by you, but used for work, is also Company property.

At the end of your employment or when requested, you must permit the Company to access to these devices to retrieve its information. It is not the Company's intent or desire to access or retain purely personal, non-work information. We will make every effort to segregate and obtain only Company-related materials and maintain the confidentiality of your personal information.

All works, ideas, designs, branding, programs, discoveries, inventions, patents, products or other information, whether copyrightable or not, (collectively "Work Product") developed in whole or in part by you in connection with your employment with ARI will be the sole and exclusive property of ARI. You agree to irrevocably assign and hereby irrevocably assign to ARI all rights, title and interest in and to any intellectual property or other rights to Work Product, including without limitation all works created prior to employment that are incorporated into a Work Product. Upon request, you agree to take any action necessary to protect ARI's rights, interests and use of the Work Product, including, without limitation, assignment or grant of Power of Attorney or license or sub-license. Further,

you waive all rights and any claims or causes of action of any kind against ARI concerning Work Product rights.

5.36 Social Media

ARI recognizes the importance of the Internet in shaping public thinking about our Company and our current and potential products, employees, partners, and patients. We also recognize the importance of our employees joining in and helping shape industry conversation and direction thorough blogging and interaction in social media. So, we as a Company are committed to supporting your right to interact knowledgeably and socially on the Internet thorough blogging and interaction in social media.

You must make sure that your participation in social media and social networking sites does not in any way interfere with the rights or reputation of another employee, patient or the Company. Based on the circumstances, you may be disciplined, up to and including termination, for violation of this policy.

5.37 Change in Personal Information

Employees are asked to help keep the Company informed about any major change which may affect their employment status. Each employee is responsible for promptly notifying the Company of important changes in personnel data. This data is also necessary to assure that the employee receives all necessary benefits. Personnel data should be current and accurate at all times and any change of the following should be reported to the Practice Administrator:

- Name
- Address
- Preferred email address
- Primary telephone number
- Marital status – if the employee wishes to update their W-4 information.
- Number of dependents – if the employee wishes to update their W-4 information.
- Emergency telephone numbers and whom to notify in case of emergency
- Change of beneficiary
- Driving record
- Authorized payroll deductions
- Additional education and special training courses

5.38 Personnel Files

ARI shall maintain a personnel file on each employee to include such information as the employee's job application, résumé, documentation of performance and salary increases, and other employment records. Personnel files are the property of the Company, and access to the information they contain is restricted. Generally, only the Practice

Administrator or the President who have a legitimate reason to review information in a file are allowed to do so.

Employees who wish to review their own file should contact the Practice Administrator to schedule an appointment. The following provisions apply with respect to an employee's request to review his/her personnel file:

- The Practice Administrator will have the responsibility of coordinating the review of an employee's personnel file with the employee's immediate supervisor.
- The Practice Administrator must be present while the employee reviews his/her personnel file.
- The employee may take notes, but may not take unauthorized photos, remove, deface or otherwise make notations on the documents in his/her personnel file.

5.39 Civic Service

The Company encourages employees to participate in community volunteer services. However, due to the workload of most employees, volunteer services must be performed at times other than during regular work hours unless prior arrangements are approved by the Practice Administrator or President.

5.40 Outside Employment

ARI makes every effort to keep its employees as fully employed as possible and at a good rate of pay. When an employee is on the job, this means that 100% of his/her effort is required. If an employee chooses to work outside of his/her job, the outside employment must not compete with what is expected of him/her as an employee of ARI.

If the Practice Administrator or the President feels that outside employment prevents an employee from fulfilling his/her obligations to the Company, the employee will need to resign from ARI or to leave his/her outside employment.

All management and supervisory personnel are expected to enforce this policy and, by example, refrain from conflicting outside employment. Medical Staff are also subject to the Summa Health System Conflict of Interest Policy 1.3.

You may engage in outside employment as long as the outside employment does not:

- Compete with ARI business or violate any agreement you hold with the Company (i.e. Professional Employment Agreement);
- Create a conflict of interest (see below); or
- Interfere with the efficient and loyal performance of your job with us.

You must notify us in writing of any employment or business ventures outside of ARI or if you hold stock or other ownership interest in a Company that designs, manufactures, sells,

or otherwise conducts business similar to the work of ARI. We will evaluate these outside activities to determine if they compete or conflict with our business or interfere with your job with us. If we determine it does compete, conflict, or interfere, we will ask you to make adjustments to avoid the concerns. If you refuse to do so, we will consider whether continued employment with us is viable.

Regardless of your activities outside of work, especially if you engage in other employment or business ventures, you may *never*:

- Solicit or encourage an ARI patient to utilize your services or the services of another outside of our business;
- Solicit or encourage ARI employees or contractors to leave the Company's employment or end their contract with the Company;
- Use any ARI or customer equipment, including facilities, supplies, office equipment, vehicles, or anything else for outside activities;
- Engage in any work or other activities which negatively affects your ability to timely and efficiently perform your work or represent ARI;
- Perform any other work during your ARI work hours or the time you should be committing to ARI; or
- Perform work while you are on any type of leave from our Company which is inconsistent with your need for leave. For example, if you are on leave from us because of a back injury, you cannot perform outside work which requires your back to be fully functional.

We consider these policies to be very serious. Therefore, violating any part of this policy, including failing to inform us of outside employment or other business ventures, is cause for discipline, including termination.

5.41 Conflict of Interest

A conflict of interest is a situation when an employee's outside activities could negatively affect ARI or the employee's job performance. Employees must be free of conflicts of interest that could adversely influence your judgment, objectivity or commitment to ARI or patients in providing services.

Employees should not knowingly use ARI property, funds, position or power for personal or political gain.

Employees should not recommend or suggest any specific physician, clergy, funeral director, ambulance service, florist, or any other health-related source to patients, visitors or callers. If asked to give recommendations, politely decline.

Examples of conflicts of interest include, without limitation:

1. Holding stock, ownership, or other financial interest in any business or other entity which competes in any way with the work or business plans of the Company.
2. Having outside employment or investment that affects your ability to satisfactorily, objectively and efficiently perform your work for ARI.
3. Leveraging ARI relationships with Patients, Providers, Suppliers or Business Associates for your own personal or commercial gain or the commercial gain or benefit of a person, business or Company outside of ARI, even a non-competing business or Company.
4. Providing the same or similar services offered by ARI to current or prospective patient outside of the Company or assisting another person or entity in doing so.
5. Using Confidential Information or ARI's property for your personal commercial gain or advantage, or for the commercial gain or advantage of another.

ARI recognizes that you may take part in legitimate financial, Company, charitable and other activities outside your employment with ARI, but you must promptly disclose any potential conflict of interest to the President or Practice Administrator before engaging in such activities.

Medical Staff are also subject to the Summa Health System Conflict of Interest Policy 1.3.

5.42 Employment of Relatives

The Company discourages the employment of close relatives because it is not considered sound business practice. However, under certain conditions, the Practice Administrator or the President may waive this policy in favor of employing close relatives within the organization.

For the purpose of this policy, a relative is any person who is related by blood or marriage or whose relationship with the employee is similar to that of persons who are related by blood or marriage.

5.43 Orientation

ARI has designed an orientation program to familiarize you with ARI and provide important information related to working here. Orientation is the responsibility of the Practice Administrator, President and Chairperson(s). The goals of New Employee Orientation will be to provide a program that will orient new employees to the:

- Mission, vision, values, and guiding principle of the organization so that they will, in turn, impact the organization with the expected purpose, direction, and behaviors.

- History and culture of the organization and the cultural values of the patients/patients we serve.
- Organizational expectations, policies, procedures, and practices of the Company to ensure standardization throughout the organization.
- Strategic initiatives of the organization and how they impact the achievement of the initiatives.
- System-wide computer programs used within the organization and their role in using the technology.

All new employees must attend an orientation session. During the orientation session, the employee will receive an Employee Handbook and will be given an opportunity to ask questions about any information contained in the Handbook.

Two copies of an Acknowledgment of Receipt and Understanding are located at the end of the Handbook. After reviewing the Handbook, each employee must sign the two copies of the statement acknowledging his/her receipt of and his/her understanding of the information contained in the Employee Handbook. One signed/ witnessed copy of the Acknowledgment of Receipt and Understanding will remain in the employee's Handbook. The other signed/witnessed copy of the statement must be returned to the Practice Administrator within three (3) days of commencement of employment. This signed/witnessed copy of the statement will become part of the employee's personnel file.

The Employee Handbook is the property of ARI and must be returned upon separation from employment

5.44 Evaluation Period

During the first 90 days of employment, ARI and each new employee are given an opportunity to evaluate whether the employment relationship should continue. Before the end of this 90-day period, the employee's performance will be evaluated. An employee who satisfactorily completes the evaluation period will be notified by the President or Practice Administrator of his/her employment status.

For administrative and support staff only, during the evaluation period, the employee may voluntarily terminate employment without notice, or if the performance of the employee is not satisfactory as determined by ARI, the employee may be released with or without notice.

The completion of the evaluation period should not be considered as a guarantee of permanent employment. ARI evaluates employees on a continuing basis and reserves the right to terminate an employee at any time during or after the evaluation period.

5.45 Signatures and Authority

All employees are required to truthfully and fully complete Company paperwork on demand, such as handbook acknowledgement, I-9, disciplinary paperwork, etc. Failure to do so may subject you to disciplinary action.

Only the Practice Administrator and President of the Company have the authority to sign and enter into binding contracts on behalf of ARI.

5.46 Motor Vehicle Policy

All employees authorized to drive Company-owned or leased vehicles (which we currently have none), or personal vehicles, in conducting Company business must possess a current, valid driver's license and an acceptable driving record. Any change in license status or driving record must be reported to the Practice Administrator immediately. Periodically, the Company may request Motor Vehicle Reports to validate your driving credentials. Should a violation be reported, you may be temporarily suspended from driving responsibilities until these violations have been cleared.

A valid driver's license must be in your possession while operating a vehicle on or off Company property. It is the responsibility of every employee to drive safely and obey all traffic, vehicle safety and parking laws or regulations. Drivers must demonstrate safe driving habits at all times and employees who operate a Company-owned or leased vehicle may be required to take a physical exam provided at the Company's expense to determine their fitness for operating a motor vehicle.

Annual Review. To assure that we have responsible drivers in our cars, trucks and vans, we will check the driving record (MVR) of each applicant for a driving position and, annually review the MVR's of current employees who drive Company vehicles. The President and/or the Practice Administrator must be notified immediately if you receive a DUI, lose your license for any reason or lose insurance coverage on your vehicle.

Upon review of driver's record, if the Company's insurance carrier declines to cover you as a driver, you may be terminated. Failure to maintain a valid driver's license and personal automobile insurance may result in termination.

5.47 Transportation and Travel Expenses

Physicians and credentialed providers are provided an allowance for expenses related to Corporate related business or education travel. Physicians or other employees who engage in travel for special corporate projects or endeavors will have expense allowances based on board pre-approval.

Company-Owned/Leased Vehicles (we currently have none)

All travel in Company vehicles on non-Company business must be authorized in advance by the President or Practice Administrator. This includes vehicles that may be leased by the Company as well as those vehicles that are owned by the Company.

The following are specific policies related to Company-owned/leased or rental vehicles:

- Company-owned/leased vehicles will be driven only as needed for jobs during working hours. Company-owned/leased vehicles will be driven only for transportation to and from destinations as specified.
- Company-owned/leased vehicles will not be driven for personal use without prior approval.
- Authorized employees are the only employees who are permitted to take the Company owned/leased vehicle home. This is only for the purposes of commuting to and from the employee's home and the workplace.
- Drivers should ensure that all occupants, including himself/herself, wear safety belts when the vehicle is in operation.
- Drivers shall comply with respective laws governing motor vehicle operations.
- Only the driver assigned to the vehicle is authorized to sign for gasoline, oil, etc.
- All charge receipts must include the name and address of the vendor, the date of purchase, the number of gallons purchased, the amount paid, the vehicle ID number, and the mileage on the odometer.
- Alcoholic beverages or illegal substances will not be allowed in a Company vehicle at any time.
- No driver who has been drinking alcoholic beverages or is under the influence of drugs or illegal substances will be allowed to drive a Company-owned/leased vehicle.
- No one, other than an authorized Company employee, is permitted to operate or ride in a Company-owned/leased vehicle.
- Vehicles must be kept clean (interior and exterior) at all times and thoroughly washed.
- Absolutely no smoking of any kind in Company vehicles.
- Vehicles must be properly maintained according to the manufacturer's schedule.
- Any employee who misuses a Company-owned/leased vehicle will be subject to dismissal.
- Any damage to a Company-owned/leased vehicle caused by employee carelessness or misjudgment is the responsibility of the employee.
- Cell phone use while operating a motor vehicle is strictly prohibited.
- Minimum insurance requirements specified by the Company's insurance carrier are: Individuals driving a Company-owned vehicle must also maintain a personal automobile insurance policy that carries liability limits of at least \$250,000. Proof of coverage must be provided annually to the Company and upon request.

- Your immediate supervisor, and/or the President and/or The Practice Administrator must be notified immediately if you receive a DUI, lose your license for any reason or lose insurance coverage on your vehicle.

Personal Vehicles

Employees may use their personal vehicles on official Company business provided prior approval has been obtained from the President or Practice Manager. A mileage rate based on acceptable and current Internal Revenue Service regulations will be paid to an employee who use his/her personal vehicle on approved official Company business. If previous employment arrangements have been made, employees using personal vehicles for Company use may be given an automobile allowance, and the Company may cover fuel and other automobile related expenses. Minimum insurance requirements as specified by the Company's insurance carrier must be in effect at the time the employee's personal vehicle is used and the employee may be required to provide the appropriate proof of insurance. The Practice Administrator or President must be notified immediately if you receive a DUI, lose your license for any reason or lose insurance coverage on your vehicle.

5.48 Cellphones, Tablets and Laptops

Company-provided devices may include cell phones, tablets, laptops and personal digital assistants, etc. As with stationary business equipment, these devices should also be used primarily for business purposes. Employees have no reasonable expectation of privacy in regard to the use of such devices, and all use is subject to monitoring, to the maximum extent permitted by applicable law. This includes, as permitted, the right to monitor personal communications as necessary.

Company-provided cellular phones must remain on and accessible during work time.

Employees should exercise discretion with the use of personal communication devices. Employees should not receive or make personal phone calls or text messages on work time. Employees may make or receive calls on non-work time (i.e. breaks) in designated non-patient care areas.

Employees may be authorized to use their own devices for business purposes. These employees should work with the IT department to configure their devices for business use. Communications sent via a personal device also may be subject to monitoring if sent thorough the Company's networks and the device must be provided for inspection and review upon request. The Company reserves the right to remotely wipe work-related information and data from your personal device used for business purposes.

Employees are issued, or permitted to use their own device, for business purposes at the discretion of the IT department and the Practice Administrator. Reasons you may be issued, or permitted to use your own, device include but are not limited to: travel is required to complete your assigned duties; you hold a remote office in addition to working in the Company office; your availability after office hours is necessary or often required in the completion of your assigned duties; the IT department feels it is necessary for you to have a device.

Accepting a device for business purposes or agreeing to use your personal device for business purposes, implies your agreement to comply with Company policies surrounding devices. Additionally, it may be necessary for the Practice Administrator, the IT department, a fellow employee or a patient to contact you outside of office hours. If this communication warrants an immediate response, and you have access to a device for business purposes, you are expected to respond. Our business is one that warrants your availability for last minute changes and updates. Please consult our policy on reporting time in the attendance section of this Handbook.

Employees are responsible for any accessories; any non-Company approved game and application downloads; additional costs of devices in excess of amount covered by Company; lost or damaged equipment outside of the manufacturer's warranty; phone warranty or replacement coverage, if desired; additional add-on services, if desired. Any personal charges will be deducted from your paycheck within compliance of state laws.

When sending a text message or using a device for business purposes, whether it is a Company-provided or personal device, employees must comply with applicable Company guidelines, including policies on sexual harassment, discrimination, conduct, confidentiality, equipment use, timekeeping and operation of vehicles.

If an employee who uses a personal or Company-issued device for business resigns or is terminated, the employee will be required to submit the device to the IT department for resetting on or before his or her last day of work. At that time, the IT department will reset and remove all information from the device, including but not limited to, Company information and personal data (such as contacts, emails and photographs) unless there is a valid, business related reason for retention, for example compliance with applicable federal, state and local laws or legal holds.

The IT department will make efforts to provide employees with the personal data in another form (e.g., on a disk) to the extent practicable; however, the employee may lose some or all personal data saved on the device.

Employees may not use their personal device for business unless they agree to submit the device to the IT department on or before their last day of work for resetting and removal of Company information. This is the only way currently possible to ensure that all Company

information is removed from the device at the time of termination. The removal of Company information is crucial to ensure compliance with the Company's confidentiality and proprietary information policies and objectives.

Please note that whether employees use their personal device or a Company-issued device, the Company's electronic communications policies, including but not limited to, proper use of communications and computer systems, remain in effect.

Device Use While Driving

Employees who drive on Company business must abide by all state or local laws prohibiting or limiting device use while driving. Further, even if usage is permitted, employees may choose to refrain from using any device while driving. "Use" includes but is not limited to talking or listening to another person or sending an electronic or text message via the device. Please note texting and emailing while driving is prohibited in all circumstances.

Regardless of the circumstances, including slow or stopped traffic, if use of any device is not permitted while driving, employees should proceed to a safe location off the road and safely stop the vehicle before placing or accepting a call. If acceptance of a call is absolutely necessary while the employee is driving, and permitted by law, the employee is required by ARI to use a hands-free option.

It is always at your discretion as the employee to make the decision, in any circumstance, to not place yourself in harm's way to fulfill business needs. Devices may be required as part of your job duties, but under no circumstances are you required to conduct business while operating a motor vehicle. Due to this fact, employees who are charged with traffic violations resulting from the use of their devices while driving will be solely responsible for all liabilities that result from such actions.

Employees who violate this policy will be subject to disciplinary actions, up to and including employment termination.

Section 6: Termination of Employment

6.1 Separation from Employment

ARI hopes that its relationship with its employees is mutually beneficial for both parties. Whether or not to terminate an employment relationship is at the sole discretion of the Company or you and can be made at any time with or without warning or notice.

Physicians, physician extenders, and exempt employees with professional employment agreements have respective contractual stipulations for notice of employment termination which apply. Employees with Professional Employment Agreements who leave prior to contractual interval without prior approval by the corporate board forfeit terminal compensation.

Other administrative and support staff: If you decide to leave ARI for any reason, we ask that you give us at least two (2) weeks' advance written notice so we can prepare for your departure and any resulting operational changes. Keep in mind, however, that we may not retain you for all or part of that time. Written resignation letters should be given to your supervisor and indicate the last day you will be working and the reason for leaving the Company. Failing to give at least two (2) weeks' written notice will result in forfeiture of any unused paid time off and you may not be eligible for rehire with the Company.

ARI may classify terminations as they occur based upon the following:

Resignation. Non contract employees who voluntarily resign from their position are required to provide written notice to the Practice Administrator at least two (2) weeks in advance of the date they intend to terminate employment. Failure to provide two (2) weeks' written notice may result in the employee not being eligible for re-employment with the Company and results in forfeiture of unused paid time off. The Company will determine whether paid time off is to be taken or whether the employee is to continue working up to the date of termination.

Voluntary Termination. A voluntary termination is when an employee terminates his or her employment. For example, staff who voluntarily resign from their jobs, do not work when scheduled, fail to follow Company policies or fail to call off according to the policy are considered to have voluntarily terminated their employment.

Involuntary Termination. An involuntary termination is when the Practice Administrator or the President terminates the employment relationship. The Practice Administrator or the President may terminate employment at any time for any legal reason, with or without warning or notice. Employees that are involuntarily terminated are not eligible for reemployment.

Layoff. Situations or conditions, economic or otherwise, may require the Company to lay off administrative or support staff employees. Employees that are laid off are eligible for rehire at the discretion of the Company but rehire is not guaranteed.

If you believe that you were terminated unfairly, wrongly or in a discriminatory manner, you should report your concerns immediately to the Practice Administrator or the President. You do not have to confront the person who has terminated you to report abuse. Good faith reports of a wrongful termination will be managed with the attention they deserve, including investigation of the charges.

Please note, you are an at-will employee, and nothing in this Handbook or this policy shall constitute a contract requiring certain actions be taken before termination, including any step-by-step or progressive disciplinary procedure or any requirement to classify your termination. ARI has the right to terminate your employment at any time and for any lawful reason, with or without rendering counseling, warnings, reprimands, or other forms of discipline. Likewise, you may terminate your employment at any time and for any reason.

6.2 Return of Property

You are responsible for returning items issued to you by the Company or other items belonging to the Company that are in your possession, custody, or control. These items include but are not limited to:

- Keys
- Credit cards
- Cellular phones
- Uniforms and clothing/items with Company logo
- Telephone and fax equipment
- Equipment/tools
- Written materials
- Financial information
- Computer software
- Computer hardware (i.e. laptop)
- Operating Manuals
- Identification badges
- Parking placards
- Prospect listings
- Library books
- All documents pertaining to Company business

You must return all Company property and any copies of that property immediately upon request or upon termination of employment. Please work with the Practice Administrator to return all Company property as well as complete a formal exit interview with the Practice Administrator prior to your departure. Where permitted by and to the full extent of

applicable laws, the Company may withhold from your paycheck or final paycheck the cost of any items that are not returned when required or if the items are not returned in proper working order. ARI may also take all action deemed appropriate to recover or protect its property.

6.3 Exit Interview

An employee planning to leave the Company may be asked to participate in an exit interview. The President, and/or The Practice Administrator will meet with the employee prior to the termination. Discussions concerning the reasons for leaving will assist the Company in evaluating the effectiveness of its personnel policies and practices. At the time of the exit interview, matters relating to final pay and any other personal considerations will be arranged.

6.4 Final Paycheck

The Company will determine if the terminating employee has any outstanding debt owed to the Company and whether the individual has in his/her possession any Company credit cards, uniforms, tools, keys, safety equipment, vehicles or other Company property.

Upon completion of a full accounting of the employee's and the Company's accounts (as determined by the Company), a final pay check for time worked (less deductions) will be issued to the employee on the next regular pay day in accordance with applicable federal and state law. Final paychecks will not be issued at the time of dismissal. Employee expressly acknowledges that Company can withhold monies owed to the Company from the employee's paycheck as permitted by law.

The Company will issue a check designated as the final payment for all services rendered.

Upon resignation or termination, the employee should contact the Practice Administrator for possible conversion of group insurance and to address any financial issues.

You should notify the Company if your address changes so that your tax information will be sent to the proper address.

6.5 Requests for Employment Verification

Requests for job references or verifications of employment must be submitted to the Practice Administrator. Individual co-workers are not permitted to give reference information or employment verifications on behalf of ARI.

Addendums & Acknowledgments

Version 1.1 (9/1/2024):

3.2 Stop the sentence at "complete a normal workday and work week."

3.14 add to title - For Support Staff"

3.17 Increased average wRVU minimum to 45. Specialty physicians may read their specialty cases out of order as needed. Avoid work distractions (watching TV, internet videos, children in the area, or personal phone calls). Quality Assurance: All physicians are required to send detected interpretive and procedural error cases as encountered to a quality manager. At the quality manager(s) discretion these cases may be forwarded to the interpreting physician. Cases which cross a certain threshold of clinical significance will be tracked and feedback on the number of such cases will be provided on a routine basis to each physician.

4.6.10 Updated maternity/paternity leave policy to add paid 4 weeks

5.5 Physicians will also be provided an opportunity to give performance feedback to those in leadership positions.

EMPLOYEE HANDBOOK ACKNOWLEDGEMENT OF RECEIPT

I acknowledge that I have received ARI's Employee Handbook, read, understand the information in it, and have had the opportunity to ask questions and receive clarification. I specifically acknowledge that I have read the policies against harassment, discrimination, and bullying and understand that ARI does not tolerate this type of conduct. It is also clear to me how to report any concerns of harassment, discrimination, or bullying.

I agree to comply with all policies contained in this Handbook.

I understand this Employee Handbook does not create a contract of any kind between myself and ARI and that all of ARI's policies, including benefits, are subject to change or elimination at any time, without advance notice.

I understand that my employment with ARI is at-will, meaning that either the Company or I may terminate the employment relationship at any time and for any lawful reason or for no reason. I understand that no oral or written statements, except those in writing and signed by the President or Practice Administrator, can modify our employment-at-will relationship or create any type of contract between us.

I understand that this Handbook states the Company's policies and practices in effect on the date of publication. I understand that nothing contained in this Handbook may be construed as creating a promise of future benefits or a binding contract with the Company for benefits or for any other purpose. I also understand that these policies and procedures are continually evaluated and may be amended, modified or terminated at any time. I understand it is my responsibility to read all Company policies.

Also, should I ever leave employment with ARI for whatever reason, I agree to return all of the Company's property in the same condition in which I received it, less normal wear and tear, and that the replacement cost of any property that I fail to return, or return in improper condition, will be deducted from my pay, and any remaining amount will be due to ARI.

Further, I consent to and understand that ARI may retain or deduct from my wages (if non-exempt), costs associated with an advance payment, theft, embezzlement, other misconduct, training, unearned vacation time, and other costs as described in this Handbook, consistent with minimum wage requirements.

I hereby irrevocably assign and hereby assign to ARI all right, title, and interest in and to any intellectual property or other rights to Work Product as defined in this Handbook and waive all rights and any claims or causes of action of any kind against ARI concerning Work Product rights. I release ARI from any liability for providing a reference for me to any employer to whom I may apply for employment in the future.

I understand that the policies in this Handbook supersede any prior handbooks or verbal or written policies that I have received.

Employee Signature

Date

Printed Name: _____

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Also, should I ever leave employment with ARI for whatever reason, I agree to return all of the Company's property in the same condition in which I received it, less normal wear and tear, and that the replacement cost of any property that I fail to return, or return in improper condition, will be deducted from my pay, and any remaining amount will be due to ARI.

Further, I consent to and understand that ARI may retain or deduct from my wages (if non-exempt), costs associated with an advance payment, theft, embezzlement, other misconduct, training, unearned vacation time, and other costs as described in this Handbook, consistent with minimum wage requirements.

I hereby irrevocably assign and hereby assign to ARI all right, title, and interest in and to any intellectual property or other rights to Work Product as defined in this Handbook and waive all rights and any claims or causes of action of any kind against ARI concerning Work Product rights. I release ARI from any liability for providing a reference for me to any employer to whom I may apply for employment in the future.

I understand that the policies in this Handbook supersede any prior handbooks or verbal or written policies that I have received.

Employee Signature

Date

Printed Name: _____